

SOLICITATION, OFFER AND AWARD			1. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)		RATING		PAGE 1 OF 81		
2. CONTRACT No.		3. SOLICITATION No. SPE1C1-26-R-0066		4. TYPE OF SOLICITATION ☐ SEALED BID (IFB) ☒ NEGOTIATED (RFP)		5. DATE ISSUED 2026 MAR 26		6. REQUISITION/PURCHASE No. 1000226343	
7. ISSUED BY DLA TROOP SUPPORT C AND T SUPPLY CHAIN 700 ROBBINS AVENUE PHILADELPHIA PA 19111-5096 USA				CODE SPE1C1		8. ADDRESS OFFER TO See Continuation Sheet			

NOTE : In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

SOLICITATION	
9. Sealed offers in original and 1 copies for furnishing the supplies or services in the Schedule will be received at the place specified in Item 8, or if handcarried, in the depository located in Not Applicable until 3:00PM local time 2026-Apr-27 (Hour) (Date)	
CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision No. 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.	
10. FOR INFORMATION CALL: 	
A. NAME Marissa Sacca DMS0190	
B. PHONE/FAX (NO COLLECT CALLS) Phone: 445-737-5984 FAX:	
C. EMAIL ADDRESS Marissa.1.Sacca@dla.mil	

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OFFER (Must be fully completed by offeror)	
NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.	
12. In compliance with the above, the undersigned agrees, if this offer is accepted within calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the price set opposite each item, delivered at the designated point(s), within the time specified in the schedule.	

13. DISCOUNT FOR PROMPT PAYMENT  (See Section I, Clause No. 52.232-8)		10 CALENDAR DAYS (%)		20 CALENDAR DAYS (%)		30 CALENDAR DAYS (%)		CALENDAR DAYS (%)	
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):		AMENDMENT NO.		DATE		AMENDMENT NO.		DATE	
15A. NAME AND ADDRESS OF OFFER-OR		CODE		FACILITY		16. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)			
15B. TELEPHONE NUMBER AREA CODE NUMBER EXT.		15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE ☐		17. SIGNATURE		18. OFFER DATE			

AWARD (To be completed by Government)					
19. ACCEPTED AS TO ITEMS NUMBERED		20. AMOUNT		21. ACCOUNTING AND APPROPRIATION	
22. AUTHORITY FOR USING OTHER THAN FULL AND OPEN COMPETITION: ☐ 10 U.S.C. 2304 (c) () ☐ 41 U.S.C. 253 (c) ()		23. SUBMIT INVOICES TO ADDRESS SHOWN IN  ITEM (4 copies unless otherwise specified)			
24. ADMINISTERED BY (If other than item 7) CODE		25. PAYMENT WILL BE MADE BY CODE			
26. NAME OF CONTRACTING OFFICER (Type or print)		27. UNITED STATES OF AMERICA (Signature of Contracting Officer)		28. AWARD DATE	

SECTION A - SOLICITATION/CONTRACT FORM**TECHNICAL REQUIREMENTS**

THIS DOCUMENT INCORPORATES TECHNICAL AND/OR QUALITY REQUIREMENTS (IDENTIFIED BY AN 'R' OR AN 'I' NUMBER IN SECTION B) SET FORTH IN FULL TEXT IN THE DLA MASTER LIST OF TECHNICAL AND QUALITY REQUIREMENTS FOUND ON THE WEB AT: <http://www.dla.mil/HQ/Acquisition/Offers/eProcurement.aspx>.

FOR SIMPLIFIED ACQUISITIONS, THE REVISION OF THE MASTER IN EFFECT ON THE SOLICITATION ISSUE DATE OR THE AWARD DATE CONTROLS. FOR LARGE ACQUISITIONS, THE REVISION OF THE MASTER IN EFFECT ON THE RFP ISSUE DATE APPLIES UNLESS A SOLICITATION AMENDMENT INCORPORATES A FOLLOWON REVISION, IN WHICH CASE THE AMENDMENT DATE CONTROLS.

Reference Block 12 on page 1 of form SF33. Proposals shall remain valid for 180 calendar days after the date established for receipt of offers stated in Block 9 on page 1, or as modified by amendment to this solicitation.

The following methods of submitting a proposal are authorized in the solicitation:

DLA Internet Bid Board System (DIBBS): To submit an offer through DIBBS, search for the solicitation and then click the Red "Offer" button on the search results screen (Note: users must be logged in to DIBBS in order to submit the offer through DIBBS). For additional guidance regarding uploading offers through DIBBS, refer to the "DIBBS Upload Offer Guidance" attachment located in Section J of this solicitation.

Responses received by other electronic means, even those within the FAR definition of "electronic commerce" or "electronic and information technology", such as facsimile (fax), electronic mail (email) will **not** be considered for award.

The time for receipt of offer is 3:00 P.M. Eastern Standard Time, or when applicable, Eastern Daylight Savings Time on the return date. Offer submission using EDI/DIBBS is subject to electronic interface latency which can result in transmission delays. Offerors must consider transmission delays in the EDI/DIBBS system when submitting offers for consideration and assume the risk of late transmission/submission. As an alternative, the direct entry of offer information into the DIBBS website is a method that precludes transmission delays and will ensure the offer is evaluated.

HOW INTERRUPTIONS AFFECT RETURN TIME AND DATE: If an emergency or unanticipated event interrupts DIBBS processes so that offers cannot be submitted on DIBBS at the close of a solicitation, the return date/time will be extended to the same time of day on the next business day on which DIBBS processes resume. Notice of the extension will be provided on the DIBBS home page. A vendor's inability to submit an offer caused by failure of a vendor's hardware, software, Internet Service Provider, or the World Wide Web itself, is not cause for extension of a solicitation.

An offeror must be registered in DIBBS, and able to log in, to upload proposals. Therefore, offerors are encouraged to register immediately if not already registered. Further, offerors are encouraged to ensure they can log into their account immediately. An offeror's failure to register, be able to log in,

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SECTION A - SOLICITATION/CONTRACT FORM (CONTINUED)

or ability to upload proposals for any reason does not constitute an acceptable reason for a late submission.

Product Demonstration Model (PDM) Submission:

Product Demonstration Models are required to be submitted through traceable means via the U.S. Postal Service or a Commercial Carrier (Example: FedEx, Airborne, UPS, DHL, Emery). **In-person delivery of PDMs by offerors is not authorized. The Tracking Number shall be provided as part of the DIBBS electronic upload proposal submission.**

PDMs are to be delivered between 8:00 a.m. and 3:00 p.m., Monday through Friday, except for legal federal holidays as set forth in 5 USC 6103. Packages must be plainly marked ON THE OUTSIDE OF THE CARRIER'S PACKAGE with the solicitation number, date, and time set forth for receipt of offers as indicated in block 9 of the Standard Form 33. Ultimately, it is the offeror's responsibility to ensure that its PDMs are received at the correct location at the correct time. Failure to do so may result in the offeror's proposal being deemed untimely and not considered further for the award per FAR 52.215-1 Instruction to Offerors - Competitive Acquisitions.

NOTE: Defense Biometric Identification System (DBIDS) is used at this facility and DBIDS requirements shall be followed by all carriers attempting to deliver a proposal and/or package to this facility. Additional information can be obtained via <https://dbids-global.dmdc.mil>

NOTE: EFFECTIVE 07 MAY 2025 ALL CARRIERS/INDIVIDUALS ATTEMPTING TO DELIVER ANY PACKAGES/PROPOSALS/ETC. TO DLA TROOP SUPPORT SHALL HAVE PRESENT CREDENTIALS THAT MEET REAL ID REQUIREMENTS IN ORDER TO GAIN ACCESS TO MAKE A DELIVERY. NO EXCEPTIONS SHALL BE MADE.

The time for receipt of Product Demonstration Models is 3:00 P.M. Eastern Standard Time, or when applicable, Eastern Daylight Savings Time on the solicitation closing date. If a Product Demonstration Model is not submitted by date and time of the closing, your offer will be considered incomplete.

Product Demonstration Models shall be sent to:

DLA Troop Support
ATT: Marissa Sacca
Building 3-A-4422
700 Robbins Avenue
Philadelphia, PA 19111

NOTE: In order for an offer to be considered timely, both Product Demonstration Models and Solicitation Package MUST be received by the date and time identified herein. Partial proposals (e.g. PDMs only or Solicitation package only) will not be further evaluated and not eligible for award. Offerors are responsible to ensure timely delivery and/or submittal.

Fill in the carrier and tracking number for the PDM(s) below:

CARRIER: _____

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SECTION A - SOLICITATION/CONTRACT FORM (CONTINUED)

TRACKING NUMBER: _____

Please enter the following information (if applicable):

Offeror's assigned Contractor and Government Entity (CAGE) Code: _____

Remittance Address: (if different from Contractor/Offeror address in block 15A of the SF 33).

The Government intends to award one (1) Indefinite Delivery/Indefinite Quantity, Firm Fixed Price type contract. The resultant contract will have a 12-month ordering period. Failure to offer unit pricing for the 12-month period will result in rejection of the offeror's entire proposal.

The Government intends to evaluate proposals and award the contract without discussions with offerors. Therefore, the offeror's initial proposal should contain the offeror's best terms from a cost or price and technical standpoint. However, the Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary.

This acquisition will utilize Best Value Source Selection procedures. This Solicitation requires the submission of a Technical Proposal consisting of PDMs and Past Performance as part of the offer. For award evaluation purposes non-price/non-cost factors are significantly more important in the award evaluation process than price. The Technical Proposal will be evaluated to determine compliance with all characteristics listed for evaluation in the solicitation. Failure to furnish this information by the time specified in the solicitation may be cause for rejection of offers if not otherwise acceptable under the provisions for considering late offers.

Refer to Sections L and M for instructions regarding offer submission and evaluation criteria.

CAUTION NOTICES

SECTION A - SOLICITATION/CONTRACT FORM (CONTINUED)

Throughout the solicitation there are fill-ins and check boxes for the offeror to complete - failure to complete may result in rejection of the offer.

All signatures must be either handwritten or digital signatures. Typed signatures are not acceptable.

Full text of procurement notes (e.g. C03) can be found at the following link:
<http://www.dla.mil/HQ/Acquisition/Offer/eProcurement.aspx>

SET-ASIDE CLAUSE CAUTION NOTICE

This requirement is being solicited as a Small Business Set-Aside under FAR 6.203. This procurement will include both FAR 52.219-6 Notice of Total Small Business Set-Aside and FAR 52.219-6 Notice of Total Small Business Set-Aside Alternate I, along with FAR 52.219-14, Limitations on Subcontracting. Offers will only be solicited from small business concerns and Federal Prison Industries.

ENSURE ALL CLAUSE FILL-INS ARE COMPLETE BEFORE SUBMITTING PROPOSAL

All offerors must complete annual representations and certifications electronically via the Online Representations and Certifications Application (website at: <http://www.sam.gov>).

This acquisition will utilize Best Value Trade-Off Source Selection Procedures. A Technical Proposal will be required in support of your offer. Please read sections "L" and "M" carefully as they contain instructions for preparation and explain the factors that will be used in the evaluation of your proposal.

Offerors are cautioned to make their original offer their best offer, as the Government reserves the right to make an award based on the initial offers without further discussions or negotiations.

Offerors must provide fill-in information throughout the solicitation. Please sign page one of this solicitation and return the entire completed solicitation as your offer.

Please complete **FAR 52.215-6 Place of Performance** in this solicitation for each cutting and sewing place of performance and identify which function the place of performance will perform. For sewing, indicate the particular item each place of performance will be sewing.

SYSTEM FOR AWARD MANAGEMENT (SAM)

All Contractors must register on the SAM website: <https://www.sam.gov> in order to be considered for award.

Offerors are reminded to complete all applicable representations and certifications appearing in this solicitation. Failure to complete all representations and certifications may result in the offer being removed

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from award consideration for failure to comply with all terms and conditions of the solicitation.

LATE BIDS

It is the Offeror's responsibility to ensure that offers reach the Government office designated in the solicitation on time.

Timeliness of an offeror's submission will be based upon the following:

- 1) The timeliness of an offeror's Price and the Past Performance Technical Proposals will be based upon the receipt time stamp in the DIBBS electronic upload proposal submission.
- 2) The timeliness of PDMs will be based on the date/time listed in the tracking information provided. Tracking information MUST clearly indicate that the carrier delivered the PDM package(s) by the solicitation closing date and time.

NOTE: If the ability to upload proposals is unavailable for any reason, this does not constitute an acceptable reason for a late bid.

NOTE: In order for an offer to be considered timely, both Product Demonstration Models and the Solicitation Package MUST be received by the date and time identified herein. Partial proposals (e.g., PDM only or Solicitation package only) will not be further evaluated and not eligible for award. Offerors are responsible to ensure timely delivery and/or submittal.

Late Submissions, Modifications, and Withdrawals: See Section L, FAR 52.214-7, or FAR 52.215-1. All offers are subject to all terms and conditions contained in the solicitation.

Reference FAR 15.208(a), which states "Offerors are responsible for submitting proposals, and any revisions, and modifications, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. Offerors may use any transmission method authorized by the solicitation..."

Once logged in, vendors will be able to submit an offer in response to a solicitation found on the Request for Proposal (RFP) search screen by selecting the "Offer" icon. The button will only be selectable for vendors who are logged onto DIBBS. If not logged in yet, DIBBS will take you to the log in screen.

It is also the responsibility of the Offeror to address and mark offers as specified in FAR 52.214-5 - SUBMISSION OF BIDS - OR FAR 52.215-1 - INSTRUCTIONS TO THE OFFERORS - COMPETITIVE ACQUISITION

CAUTION: Email offers are not authorized for submission of initial offers but may be authorized for subsequent requests for revised offers or final proposal revisions. Offerors are cautioned that email proposals, modifications to proposals, acknowledgement of amendments, withdrawal of proposal, responses to negotiations, and/or final proposal revisions will only be considered when email proposals are authorized.

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-----**NOTICE TO PROSPECTIVE SUPPLIERS ON USE OF SUPPLIER PERFORMANCE RISK SYSTEM IN PAST PERFORMANCE EVALUATIONS**

The Supplier Performance Risk System (SPRS) application <https://www.sprs.csd.disa.mil/> will be used in the evaluation of suppliers' past performance. Reference provision language elsewhere in this solicitation.

THE GOVERNMENT WILL RESERVE THE RIGHT TO CONSIDER PAST PERFORMANCE INFORMATION THAT OCCURS FOLLOWING THE CLOSING OF THE SOLICITATION AS WELL.

-----**PRODUCT DEMONSTRATION MODELS**

This solicitation requires submission of Product Demonstration Models (PDMs) at time of closing as specified in this document. This solicitation will permit only an initial submission of the PDMs with the offeror's proposal at the time and date of initial closing of the solicitation; offerors will not be given the opportunity to present subsequent submissions to correct deficiencies noted in the Government's evaluation of initial PDMs. Therefore, it is imperative that offerors put forth their best effort in constructing their PDMs. Any correction to the PDMs will not be permitted and will not be accepted by the Government.

FAILURE TO SUBMIT PDMs WITH THE OFFEROR'S PROPOSAL AT THE TIME AND DATE OF THE INITIAL CLOSING OF THE SOLICITATION WILL CAUSE THE OFFEROR'S ENTIRE PROPOSAL TO BE REJECTED.

Note that the PDMs will be evaluated using the patterns and specifications provided in this solicitation. All previous versions and variations of patterns and specifications for the item being procured under the acquisition are irrelevant.

-----**PATTERN REQUESTS**

DLA Troop Support has developed a web-based system that allows manufacturers the ability to request specifications, patterns and drawings on our contracting page. To request technical data/patterns for DLA Troop Support Clothing and Textiles (C&T) solicitations, use the following link to the DLA Troop Support C&T Technical Data Repository area at: <https://www.dla.mil/Troop-Support/Clothing-and-Textiles/Industry-Support/Spec-Request/>.

-----**BERRY AMENDMENT CAUTION NOTICE**

OFFERORS ARE REQUIRED TO COMPLY WITH DOMESTIC MATERIAL RESTRICTIONS. THE BERRY AMENDMENT, THE BUY AMERICAN ACT, AND OTHER DOMESTIC MATERIAL RESTRICTION MAY APPLY. OFFERORS ARE INSTRUCTED TO REFER TO THE SOLICITATION CLAUSES RELATED TO FOREIGN SOURCING FOR MORE INFORMATION ON APPLICABILITY. THE BERRY AMENDMENT THRESHOLD HAS INCREASED FROM \$150,000 TO \$200,000 AS OF OCTOBER 1, 2025 AND VENDORS MUST CAREFULLY REVIEW RELATED CLAUSES DFARS 252.225-7006, 252.225-7012,

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AND 252.225-7015 FOR APPLICABILITY OF REQUIREMENTS. IF YOUR OFFER IS BASED ON A NON-DOMESTIC MATERIAL, YOU ARE REQUIRED TO PROVIDE DISCLOSURE INFORMATION IN YOUR QUOTE AND/OR THROUGH WRITTEN NOTIFICATION TO THE POINT OF CONTACT LISTED IN THE SOLICITATION.

NOTE: THE DEPARTMENT OF DEFENSE IS PROHIBITED BY THE PROVISIONS OF THE BERRY AMENDMENT FROM PROCURING ITEMS OF CLOTHING THAT HAVE NOT BEEN GROWN OR PRODUCED IN THE UNITED STATES OR ITS POSSESSIONS.

Section 833 of the National Defense Authorization Act for Fiscal Year 2006 Act added language to 10 U.S. C. 2533a (Berry Amendment) requiring that all articles or items of "clothing", **including the materials and components thereof**, purchased by the Department of Defense be grown, reprocessed, reused, or produced in the United States, other than sensors, electronics, or other items added to, and not normally associated with, clothing (and the materials and components thereof).

Preference for Certain Domestic Commodities -- Offerors are cautioned that all components must be of domestic origin in compliance with clause **DFARS 252.225-7012, Preference for Certain Domestic Commodities**.

CONTRACTOR CODE OF BUSINESS ETHICS

FAR 3.1002(a) requires all government contractors to conduct themselves with the highest degree of integrity and honesty. Contractors should have a written code of business ethics and conduct within thirty days of award. To promote compliance with such code of business ethics and conduct, contractors should have an employee business ethics and compliance training program that facilitates timely discovery and disclosure of improper conduct in connection with government contracts and ensures corrective measures are promptly instituted and carried out. A contractor may be suspended and/or debarred for knowing failure by a principal to timely disclose to the government, in connection with the award, performance, or closeout of a government contract performed by the contractor or a subcontract awarded there under, credible evidence of a violation of federal criminal law involving fraud, conflict of interest, bribery, or gratuity violations found in title 18 of the United States Code or a violation of the False Claims Act. (31 U.S.C. 3729-3733)

This solicitation includes FAR 52.203-13 - CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT. The contractor shall comply with the terms of the clause and have a written code of business ethics and conduct; exercise due diligence to prevent and detect criminal conduct; promote ethical conduct and a commitment to compliance with the law within their organization; and timely report any violations of federal criminal law involving fraud, conflict of interest, bribery or gratuity violations found in title 18 of the United States Code or any violations of the False Claims Act. (31 U.S.C. 3729-3733). Contractors must provide a copy of its written code of business ethics and conduct to the Contracting Officer upon request by the Contracting Officer.

C&T ELECTRONIC INVOICING -- DLA TROOP SUPPORT

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The Directorate of Clothing and Textiles (C&T) requires electronic invoicing on all contracts unless another method is mutually agreed to by the Contractor, the Contracting Officer, the contract administration office, and the payment office.

UTILIZATION OF WIDE AREA WORKFLOW - RECEIPTS AND ACCEPTANCE (WAWF-RA) IN CONJUNCTION WITH DFARS 252.232-7003, Electronic Submission of Payment Requests.

The Directorate of Clothing and Textiles utilizes VIM-ASAP, which is short for DLA Virtual Item Manager ARN Supply-Chain Automated Processing, to transmit data to WAWF-RA. VIM-ASAP is the only authorized method to electronically process requests for payment to WAWF-RA for the Directorate of Clothing and Textiles. VIM-ASAP will give you visibility of contract information, track production status and print labels. VIM-ASAP pre-populates contract data on your invoices, such as unit price, contract numbers, item numbers, addresses, and many other fields that will save you labor and time.

Advanced Shipment Notifications (ASNs) associated with Radio Frequency Identification are sent via VIM-ASAP to WAWF-RA processes.

Please contact the VIM-ASAP help desk at 888-940-7348 to get started today!

For questions about invoice preparation, call the DFAS Customer Service Resource Center at 1-800-756-4571, or check out these resources:

<http://www.dfas.mil/contractorsvendors.html> ...under the "Contractor/Vendor Pay" link.

REQUIREMENTS FOR ACCESS TO VIM

Please note: Vendors under contract with DLA Troop Support Clothing & Textiles are able to use a web-based application called **VIM**, or **Virtual Item Manager** (<https://vim.dla.mil>). VIM allows manufacturers to generate and transmit contract documents such as Delivery Orders (DD1155s) and Material Inspection and Receiving Reports (DD250s). Previously, vendors registered using a user ID and password; however, soon all vendors must use an ECA certificate to access VIM. Please see below for more information.

Why is VIM requiring access via ECA certificate?

DoDI 8520.2 Mandates the use of DoD PKI identity certificates when accessing DoD information systems. The DoD established the External Certification Authority (ECA) program to support the issuance of DoD-approved certificates to industry partners and other external entities and organizations. ECA certificates enable contractors to securely communicate with the DoD and authenticate themselves to DoD Information Systems.

What are ECA Certificates?

ECA Certificates are individually issued digital identity credentials. The DoD relies upon these credentials to ensure the identity of the user in online environments or when a certificate holder tries accessing DoD Information Systems. ECA Certificates are stored either on hardware devices (smart cards or USB devices) or software versions (stored on your computer's hard drive).

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You will use your certificate to:

- 1) Establish your identity when trying to access a protected site
- 2) Legally "sign" a document, form or application
- 3) Encrypt messages (email) or documents to ensure confidentiality

Much like a driver's license or a passport, they are unique to each individual, and cannot be shared. It is against DoD Regulations to share a username and password or allow someone to access another's ECA certificate for any reason. Violation of this policy will result in the immediate revocation of the original owner's certificate.

How can I obtain an ECA Certificate?

The following are entities authorized by the DoD to issue ECA Certificates. Review and apply for an ECA Certificate from one of the below organizations to access your VIM account:

- 1) Identrust: <http://www.identrust.com/certificates/eca/index.html>
- 2) ORC (Operational Research Consultants): <http://eca.orc.com/>

I have an ECA Certificate, how do I access VIM now?

Simply log into VIM with your existing User ID and Password as usual and then follow the steps:

- 1) Under Menu, click the "Certificate Registration" option
- 2) Read the brief instruction and then click "Continue"
- 3) Your certificate will display in a pop-up. Select the certificate and click "Continue"
- 4) You will be prompted to enter your current password for confirmation and click "OK"
- 5) The message displays "Your Certificate has been successfully registered..." Click "OK" to complete the process. You will be logged out of VIM and prompted to login with your certificate.
- 6) Click "Accept" to the Terms and then select "Certificate Login".
- 7) Your certificate will display in a pop-up. Select the certificate and click "OK" and you will be logged into your VIM account.

Remember, your old login credentials will no longer be valid and you will use your certificate to login into VIM.

Stop shipment delays and rejections!

For deliveries to the 3PL-Third Party Logistics locations, ensure your Government or commercial bills of lading are correctly annotated with the following information in the description of articles:

Weight
Pieces
National Stock Number(s) (NSNs)
Contract Number
Shipment Number

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Building/Door Number

Your truckers/dispatchers/ brokers/etc. should have this information readily available when they phone for a delivery appointment to Pre-Lodge:

Carrier Name

Number of Pallets

Vendor Name

Contract Number

Delivery Order Number

Shipment Number

Delivery appointments are required. If a carrier is unable to make a delivery appointment on time, or needs to reschedule, the carrier should call the phone numbers listed below to inform the 3PL and to make other arrangements:

DoDAAC: SD0119 **RIC:**VSTN

Name and Delivery Address: Peckham Inc.
Navy & Coast Guard 3PL
5408 W. Grand River Ave. **Bldg. A**
Lansing, MI 48906

Supports: Navy and Coast Guard Recruit (Bag) Items and Government Furnished Material Cloth

Receiving Hours: 8:00AM - 2:30PM

Schedule Deliveries: 517-316-4110 or email: vpvcustserv@peckham.org

Don't let the following common invoicing errors delay your payments any longer:

- Missing or Erroneous Contract Number
- Missing Call/Delivery Order Number
- Missing or Erroneous Shipment Number
- Failure to Mark DD250 as an Original Invoice
- Failure to Distribute a Copy of the DD250 to the Contract Administration Office Terminal
- Contract Line Item Number (CLIN) is Omitted, Incorrect or Does Not Match that Appearing in the Contract
- Missing or Erroneous Unit of Issue
- Quantity and Price are Incorrect
- Wrong Pay Office on Invoice

Be sure your original invoice is properly completed and legible.

PATIENT PROTECTION AND AFFORDABLE HEALTH CARE ACT

Please note that the Patient Protection and Affordable Health Care Act ("the Act"), 124 Stat. 119, imposes duties upon employers concerning the provision of health care to their employees. Health insurance costs,

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SECTION A - SOLICITATION/CONTRACT FORM (CONTINUED)

including any costs associated with compliance with changes in the applicable law, are the sole responsibility of the offeror. Offerors are advised that their proposals should include any costs associated with the implementation of the Act. Any changes in health coverage costs and/or costs associated with compliance, occurring after award of a contract pursuant to this solicitation will not form the basis for an equitable adjustment of the contract price.

E-VERIFY CAUTION NOTICE

Pursuant to FAR clause 52.222-54 vendors are required to enroll in the E-Verify program within thirty (30) days after the date of a contract award and comply with all terms of the clause. In addition, vendors are required to provide evidence of their enrollment in the E-Verify program to the contracting officer within thirty (30) days after the date of a contract award.

POINT OF CONTACT FOR TRANSPORTATION INSTRUCTIONS

(a) For Defense Contract Management Agency (DCMA) administered orders to include DCMA Americas, Canada: The Contractor shall contact the transportation officer at the administering DCMA location. To obtain the applicable Government shipping document/instructions, 7 days prior to shipment availability, the Contractor shall use the Shipping Instructions Request (SIR) web-based eTool application available through the DCMA's website <http://www.DCMA.mil> at <http://www.dcma.mil/itcso/cbt/SIR/index.cfm>.

(b) For DCMA International outside contiguous United States (OCONUS) administered orders (excluding DCMA Americas, Canada): The Contractor shall either use Department of Defense (DD) Form 1659 or the DCMA SIR eTool as directed by the DCMA International Transportation Office.

(1) An electronic version of the DD Form 1659 can be accessed at: <http://www.dtic.mil/whs/directives/infomgt/forms/eforms/dd1659.pdf> or may be obtained from the responsible DCMA International Contract Administration Office (CAO) Transportation Office.

(c) For Defense Logistics Agency (DLA) administered orders: The Contractor shall contact the DLA Distribution Supply Chain Transportation Office Helpdesk for shipping instructions at 1-800-456-5507 or via e-mail to delivery@dla.mil (preferred). The DLA Distribution's operating hours are Monday through Friday, 6:00 a.m. to 5:30 p.m. eastern standard time, excluding holidays. The DLA Vendor Shipment Module (VSM), previously known as the Distribution Planning and Management System (DPMS), available at <https://vsm.distribution.dla.mil>, may be used to obtain transportation instructions in lieu of contacting the transportation office.

NIST CAUTION NOTICE

A current NIST SP 800-171 assessment (not more than 3 years old) is required in order to be considered for award. Offerors are cautioned to read all provisions/clauses pertaining to NIST SP 800-171 requirements (e.g. DFARS 252.204-7008, -7012, and DFARS 252.240-7997).

CONTINUED ON NEXT PAGE

SECTION A - SOLICITATION/CONTRACT FORM (CONTINUED)

CONVERSIONS

The Government reserves the right to perform conversions to items with similar patterns and specifications, should the Government determine a need. Any conversion will be via modification and issued under the changes clause. It is the offeror's responsibility to locate component suppliers whose supplies meet the requirements of the solicitation, specifications, and related technical documents.

AUTHORIZED NEGOTIATORS:

The Government does not intend to hold discussions/negotiations, however, if discussions/negotiations are deemed necessary by the Contracting Officer, then the offeror represents that the following persons are authorized to negotiate on its behalf with the Government in connection with this request for proposal. Please list names, titles, e-mail addresses, and telephone numbers for each authorized negotiator.

Name:

Title:

Email:

Phone:

SECTION B - SUPPLIES OR SERVICES AND PRICES OR COSTS

The resultant contract will have a 12-month ordering period. Failure to provide a unit price in the table set forth below may be deemed as a non-acceptance of the solicitation terms and conditions and may result in the rejection of the offeror's entire proposal.

SECTION B - SUPPLIES OR SERVICES AND PRICES OR COSTS (CONTINUED)

There is one (1) item covered under this solicitation as follows:

Item 0001: Parka, Navy Working Uniform (NWU), Woodland Camouflage, Type III

NSN Series: 8415-01-573-4754

PGC: 03612

PD/CID/Spec: NCTRF PD 04-09C dated 20 January 2012

Pattern Date: 14 December 2020

Quantity and Dollar Value Requirements:

Minimum Quantity: 9,000 EA

Annual Estimated Quantity (AEQ): 36,000 EA

Maximum Dollar Value: \$9,900,000.00

OFFERED UNIT PRICING

12-Month Ordering Period	
Evaluation Quantity	Unit Price
36,000 EA	\$

GUARANTEED MINIMUM DOLLAR VALUE

The minimum quantity for this procurement shall be 9,000 EA. The Government may fulfill the minimum quantity by issuing a single delivery order or any number of delivery orders. However, in fulfilling the minimum quantity, the total dollar value expended by the Government shall not exceed the dollar value of the minimum quantity procured at the unit price established under the contract and is hereafter referred to as the "Guaranteed Minimum Dollar Value." The Government will be considered to have fulfilled its obligation to order the minimum quantity when the Guaranteed Minimum Dollar Value has been met. The Guaranteed Minimum Dollar Value will be calculated by multiplying the offered unit price by the minimum quantity of 9,000 EA. The final Guaranteed Minimum Dollar Value will be established at time of award when final pricing is known, using the methodology described above.

DELIVERIES

For any delivery order issued under the resultant contract, sizes can be unilaterally modified at no cost to the Government so long as the change is issued via a delivery order modification at least 90 days before the incremental due date. Size changes can be bilaterally requested at any point during the life of the contract.

Inspection and Acceptance: Origin

FOB: Destination

All deliveries under the resultant contracts will be required to be delivered FOB Destination to the following address:

CONTINUED ON NEXT PAGE

SECTION B - SUPPLIES OR SERVICES AND PRICES OR COSTS (CONTINUED)**DDoDAAC:** SD0119 **RIC:**VSTN

Name and Delivery Address: Peckham Inc.
Navy & Coast Guard 3PL
5408 W. Grand River Ave. **Bldg. A**
Lansing, MI 48906

Supports: Navy and Coast Guard Recruit (Bag) Items and Government Furnished Material Cloth

VARIATION IN QUANTITY

A variation in the quantity of any item called for by this contract will not be accepted unless the variation has been caused by conditions of loading, shipping, or packing, or allowances in manufacturing processes, and then only to the extent, if any, specified below. The permissible variation shall be limited to:

2 % increase**2 % decrease**

This increase or decrease shall apply to all CLINs for tariff sizes.

Notes:

1. The production lead time (PLT) under the first delivery order and any subsequent orders will be 120 days after date of award.
2. Acceleration of delivery is not permitted unless authorized in writing by the Contracting Officer.
3. RFID tags are required at the item, pallet, and case level for all items covered under this solicitation.
4. Government inspection of lots will be performed by the Quality Assurance Representative (QAR) at the manufacturing facility.

FIRST LOT INSPECTION

Once the contract has been awarded, the contractor will be required to contact the Contracting Officer in writing 10 days before the first lot is ready for presentation for inspection at the manufacturing facility for each item ordered on the subject contract. DLA Troop Support requires that the QAR at the manufacturing facility send five samples from the first lot to DLA Troop Support for inspection. DLA Troop Support's inspection of the five samples will be concurrent with and independent of the QAR's inspection of the first lot. After review of the five samples, DLA Troop Support may require additional samples showing any deficiencies have been corrected. Additionally, DLA Troop Support may require replacement or correction of garments in the first or subsequent lots exhibiting the deficiencies.

SPECIAL MEASUREMENTS

(a) The Government reserves the right to make size changes to include special measurement items. Special measurement items may be outside the range of the normal size tariff for that item. The Contractor will be responsible for adjustments to the Government-furnished patterns made necessary by the addition of special measurement items. Variation in quantity for all special measurement orders is +/- 0%. Inspection and Acceptance are at destination.

CONTINUED ON NEXT PAGE

SECTION B - SUPPLIES OR SERVICES AND PRICES OR COSTS (CONTINUED)

(b) Delivery of the special measurement items shall be to the location designated in the delivery order formalizing the change. The special measurement items shall arrive at the designated location within thirty calendar days after the effective date of the delivery order.

SPECIAL MEASUREMENT PRICING*:

12-Month Ordering Period
Special Measurement Unit Price
\$

***Special Measurement Unit Price shall not exceed a 25% increase over the tariff size unit price for the corresponding item during the ordering term.**

Identification of Sources for All Components for Clothing/Textile Items

(a) The offeror shall indicate below the names and addresses of those suppliers from whom each component will be obtained for use in the performance of any resultant contract. In addition, for each component, the offeror shall also identify the name of the item's manufacturer and the address of the manufacturing location. Failure to furnish this information with the offer may result in rejection of the offer.

(b) No change in the supplier(s) or manufacturer(s) listed below shall be permitted between the opening/closing date of the offer and the award, except where time permits and then only upon receipt of the Contracting Officer's written approval.

(c) Any change in the supplier(s) or manufacturer(s) listed below, and in any resultant contract, is prohibited unless it is specifically approved in advance by the Contracting Officer.

Component and Quantity	Name and Address of Supplier	Name and Address of Manufacturer

Please add sheets as needed.

Identification of Qualified Laboratory and Source Sampling

(a) The offeror or bidder shall indicate in paragraph (e) below the name and address of the laboratory or laboratories where components or end items will be tested during the course of any resultant contract. Any laboratory proposed by the Contractor is subject to the approval of the Contracting Officer.

(b) The Government quality assurance representative (QAR) will cut samples from a lot at the textile component source and send them for testing to the laboratory cited below. (The acceptability of each lot

CONTINUED ON NEXT PAGE

SECTION B - SUPPLIES OR SERVICES AND PRICES OR COSTS (CONTINUED)

will be determined through the testing of these samples). In addition, the QAR will simultaneously cut samples from the same rolls of material and send them to the DLA Troop Support laboratory when advised by the DLA Troop Support textile technologist to do so. For end items, duplicate samples will be drawn. Source sampling procedures are detailed further in DLA Troop Support Clothing & Textiles Additional Quality Assurance Requirements, see Section C of this Solicitation.

(c) The prime Contractor will notify the DLA Troop Support textile technologists at the DLA Troop Support laboratory at paactlab@dla.mil in writing at least ten days in advance when lots are to be presented to allow Government witnessing of testing at the Contractor's laboratory. If the Government intends to witness testing, a representative from the DLA Troop Support laboratory will notify the Contractor's laboratory. In the absence of Government notification, testing should proceed as scheduled.

(d) Should the Contracting Officer withdraw approval of the laboratory proposed by the Contractor during the course of a contract, DLA Troop Support will perform the required testing for up to 30 calendar days from the date of approval withdrawal. The charge for testing will be the DLA Troop Support laboratory's effective cost rate on the date of testing. The Contractor is responsible for securing the services of another laboratory during this period.

(e) Any change in the laboratory (or laboratories) specified below is prohibited unless approved in advance by the Contracting Officer.

Component	Name & Address of Component Source	Name & Address of Laboratory, with Point of Contract name, phone number, and email address

Please add sheets as needed.

* When a single lot of material requires testing by more than one laboratory for different characteristics, list the name of the secondary laboratory and the test characteristics below:

SECTION B - SUPPLIES OR SERVICES AND PRICES OR COSTS (CONTINUED)

Component	Name & Address of Component Source	Name & Address of Laboratory, with Point of Contract name, phone number, and email address

Please add sheets as needed.

(f) It is solely the prime Contractor's responsibility to schedule laboratory testing and to obtain test reports. The cost of laboratory testing shall also be borne by the prime Contractor.

(g) Shipments of component materials to the prime Contractor need not be deferred pending test results except when shade approval is required (see paragraph (h)). Cutting production lots without a passing laboratory test report on the corresponding samples is done at the Contractor's own risk.

(h) Shade evaluation is acceptance testing. Therefore, component lots may not be shipped to the prime Contractor until the DLA Troop Support laboratory accepts the shade of the material.

(End of Text)

FAR 52.215-6 -- Place of Performance (DEVIATION 2026-O0038) (FEB 2026)

(a) The offeror or respondent, in the performance of any contract resulting from this request for proposals, ☐ intends, ☐ does not intend [*check applicable block*] to use one or more plants or facilities located at a different address from the address of the offeror or respondent as indicated in this proposal or response to request for information.

(b) If the offeror or respondent checks "intends" in paragraph (a) of this provision, it shall insert in the following spaces the required information:

SECTION B - SUPPLIES OR SERVICES AND PRICES OR COSTS (CONTINUED)

Place of Performance (Street Address, City, State, County, Zip Code)	Name and Address of Owner and Operator of the Plant or Facility if Other Than Offeror or Respondent

Please add sheets as needed.

(End of Provision)

Caution: Please complete the above provision for each cutting and sewing place of performance and identify which function the place of performance will perform. For sewing, indicate the particular item each place of performance will be sewing.

SECTION B - SUPPLIES OR SERVICES AND PRICES OR COSTS (CONTINUED)**UPC/NSN LIST FOR ITEM 0001 -- PARKA, NWU, WOODLAND CAMOUFLAGE, TYPE III:**

FSC	NIIN	sizes	PGC	Description	UPCCode
8415	015734686	X-SMALL-X-SHORT	03612	PARKA,WORKING (NAVY) TYPE III	718020580616
8415	015734746	X-SMALL-REGULAR	03612	PARKA,WORKING (NAVY) TYPE III	718020105857
8415	015734754	X-SMALL-LONG	03612	PARKA,WORKING (NAVY) TYPE III	718020118659
8415	015734759	SMALL-X-SHORT	03612	PARKA,WORKING (NAVY) TYPE III	718020166339
8415	015734764	SMALL-SHORT	03612	PARKA,WORKING (NAVY) TYPE III	718020158006
8415	015734768	SMALL-REGULAR	03612	PARKA,WORKING (NAVY) TYPE III	718020475516
8415	015734771	X-SMALL-SHORT	03612	PARKA,WORKING (NAVY) TYPE III	718020065366
8415	015734802	SMALL-LONG	03612	PARKA,WORKING (NAVY) TYPE III	718020580661
8415	015734804	SMALL-X-LONG	03612	PARKA,WORKING (NAVY) TYPE III	718020475141
8415	015734927	MEDIUM-X-SHORT	03612	PARKA,WORKING (NAVY) TYPE III	718020094830
8415	015734933	MEDIUM-SHORT	03612	PARKA,WORKING (NAVY) TYPE III	718020455037
8415	015734937	MEDIUM-REGULAR	03612	PARKA,WORKING (NAVY) TYPE III	718020536101
8415	015734950	MEDIUM-LONG	03612	PARKA,WORKING (NAVY) TYPE III	718020580609
8415	015734955	MEDIUM-X-LONG	03612	PARKA,WORKING (NAVY) TYPE III	718020508702
8415	015734963	LARGE-X-SHORT	03612	PARKA,WORKING (NAVY) TYPE III	718020157900
8415	015734967	LARGE-SHORT	03612	PARKA,WORKING (NAVY) TYPE III	718020091952
8415	015734969	LARGE-REGULAR	03612	PARKA,WORKING (NAVY) TYPE III	718020087320
8415	015734974	LARGE-LONG	03612	PARKA,WORKING (NAVY) TYPE III	718020557663
8415	015734978	LARGE-X-LONG	03612	PARKA,WORKING (NAVY) TYPE III	718020526799
8415	015734985	X-LARGE-SHORT	03612	PARKA,WORKING (NAVY) TYPE III	718020443881
8415	015735033	X-LARGE-REGULAR	03612	PARKA,WORKING (NAVY) TYPE III	718020458175
8415	015735036	X-LARGE-LONG	03612	PARKA,WORKING (NAVY) TYPE III	718020069944
8415	015735044	X-LARGE-X-LONG	03612	PARKA,WORKING (NAVY) TYPE III	718020445281
8415	015735051	XX-LARGE-LONG	03612	PARKA,WORKING (NAVY) TYPE III	718020078441
8415	015735055	XX-LARGE-X-LONG	03612	PARKA,WORKING (NAVY) TYPE III	718020557304
8415	015735058	XX-LARGE-REGULAR	03612	PARKA,WORKING (NAVY) TYPE III	718020583303
8415	015866732	SMALL-XX-SHORT	03612	PARKA,WORKING (NAVY) TYPE III	718020065472
8415	015866734	SMALL-XX-LONG	03612	PARKA,WORKING (NAVY) TYPE III	718020092690
8415	015866738	SMALL/XXX-LONG	03612	PARKA,WORKING (NAVY) TYPE III	718020475226
8415	015866743	MEDIUM-XX-SHORT	03612	PARKA,WORKING (NAVY) TYPE III	718020553634
8415	015866772	MEDIUM-XX-LONG	03612	PARKA,WORKING (NAVY) TYPE III	718020531274
8415	015866774	MEDIUM/XXX-LONG	03612	PARKA,WORKING (NAVY) TYPE III	718020079110
8415	015866776	LARGE-XX-LONG	03612	PARKA,WORKING (NAVY) TYPE III	718020577845
8415	015867066	LARGE-XXX-LONG	03612	PARKA,WORKING (NAVY) TYPE III	718020561790
8415	015867070	X-LARGE/XX-LONG	03612	PARKA,WORKING (NAVY) TYPE III	718020519197
8415	015867075	X-LARGE/XXX-LONG	03612	PARKA,WORKING (NAVY) TYPE III	718020114095
8415	015867085	XX-LARGE/XX-LONG	03612	PARKA,WORKING (NAVY) TYPE III	718020517902
8415	015867103	XX-LARGE-XXX-LONG	03612	PARKA,WORKING (NAVY) TYPE III	718020496214
8415	016877189	X-SMALL-XX-SHORT	03612	PARKA,WORKING	718020983905
8415	016877191	X-SMALL-X-LONG	03612	PARKA,WORKING	718020649528
8415	016877192	XX-LARGE-SHORT	03612	PARKA,WORKING (NAVY) TYPE III	718020738499
8415	016877194	XXX-LARGE-SHORT	03612	PARKA,WORKING (NAVY) TYPE III	718020684321
8415	016877195	XXX-LARGE-REGULAR	03612	PARKA,WORKING (NAVY) TYPE III	718020853536
8415	016877196	XXX-LARGE-LONG	03612	PARKA,WORKING	718020815350
8415	016877198	XXX-LARGE-X-LONG	03612	PARKA,WORKING	718020868332
8415	016877200	XXX-LARGE-XX- LONG	03612	PARKA,WORKING	718020989136
8415	016877202	XXX-LARGE-XXX- LONG	03612	PARKA,WORKING	718020943695

SECTION C - SPECIFICATIONS/SOW/SOO/ORD**Additional Quality Assurance Requirements (AQAR)**

CONTINUED ON NEXT PAGE

SECTION C - SPECIFICATIONS/SOW/SOO/ORD (CONTINUED)

The DLA Troop Support Clothing & Textiles Additional Quality Assurance Requirements, Revision 1 dated August 2021, is incorporated into this Section C, and can be found at the following link:

<https://www.dla.mil/TroopSupport/ClothingandTextiles/CTIndustry/>

C03 Contractor Retention of Supply Chain Traceability Documentation (JUN 2023)

(1) By submitting a quotation or offer, the contractor is confirming it currently has, or will obtain before delivery, and shall retain supply chain traceability documentation, as described in paragraph (2) of this procurement note, demonstrating the item conforms to the technical requirements, and, for part numbered items, is from an approved manufacturer.

(2) Supply Chain Traceability Documentation

(i) Supply chain traceability documentation shall include basic item description; part number; drawing or specification; national stock number; manufacturing source; manufacturing source's Commercial and Government Entity (CAGE) code; and clear identification of the name and location of all supply chain intermediaries between the manufacturer to the contractor to Government acceptance.

(ii) Supply chain traceability documentation shall also include, when available, the manufacturer's batch identification for the item(s), such as date codes, lot codes, or serial numbers. For part numbered items, contractors can find examples of acceptable supply chain traceability documentation at the Counterfeit Detection and Avoidance Program (CDAP) website

(<http://www.dla.mil/LandandMaritime/Business/Selling/Counterfeit-Detection-AvoidanceProgram/>).

(iii) In addition, the contractor will obtain, retain, and provide to the contracting officer written documentation of all inspections and tests necessary to substantiate that the supplies furnished under this contract conform to contract requirements, including any applicable technical requirements for specified manufacturers' parts. Such records shall include, without limitation, test reports, test data, material certification, and manufacturing process sheets, in addition to any other information identified in the technical specifications applicable to the item.

(3) The contractor shall make supply chain traceability documentation available to the contracting officer within three business days upon the contracting officer's request. The contracting officer determines the acceptability and sufficiency of documentation. The contractor shall retain supply chain traceability documentation for ten years after final payment under this contract for audit and other valid government purposes. If the contractor fails to retain or provide the documentation, or the contracting officer finds the documentation to be unacceptable, the contracting officer may take corrective action, including, but not limited to, cancellation of undelivered orders or rejection of delivered supplies.

C14 Correction of Nonconforming Packaging or Marking (MAY 2020)

(1) The Government may correct nonconforming packaging or marking for receipts of DLA- owned materiel if the estimated costs of correction are \$1,000 or less. The contracting officer will advise the contractor of the discrepancy and that the Government has corrected the packaging or marking. The contracting officer will make a determination concerning appropriate reimbursement by the contractor for the Government's costs to correct the deficiencies. Upon determining that reimbursement is required, the contracting officer

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SECTION C - SPECIFICATIONS/SOW/SOO/ORD (CONTINUED)

will send a notice to the contractor. Upon receipt of notice from the contracting officer, the contractor shall reimburse the Government for the costs incurred by the Government to correct the deficiencies.

(2) If the estimated costs of correction for receipts of DLA-owned materiel are more than \$1,000, the contracting officer will advise the contractor of the discrepancy and have the materiel returned to the contractor for correction/resubmittal; or, if there are urgent requirements, have the Government remediate the discrepancy at the contractor's expense. If the Government remediates the discrepancy, the contracting officer will make a determination concerning appropriate reimbursement by the contractor for the Government's costs to correct the deficiencies. Upon determining that reimbursement is required, the contracting officer will send a notice to the contractor. Upon receipt of notice from the contracting officer, the contractor shall reimburse the Government for the costs incurred by the Government to correct the deficiencies.

SECTION D - PACKAGING AND MARKING**Passive Radio Frequency Identification**

(a) Definitions. As used in this clause -

Advance shipment notice means an electronic notification used to list the contents of a shipment of goods as well as additional information relating to the shipment, such as passive radio frequency identification (RFID) or item unique identification (IUID) information, order information, product description, physical characteristics, type of packaging, marking, carrier information, and configuration of goods within the transportation equipment.

Bulk commodities means the following commodities, when shipped in rail tank cars, tanker trucks, trailers, other bulk wheeled conveyances, or pipelines:

- (1) Sand.
- (2) Gravel.
- (3) Bulk liquids (water, chemicals, or petroleum products).
- (4) Ready-mix concrete or similar construction materials.
- (5) Coal or combustibles such as firewood.
- (6) Agricultural products such as seeds, grains, or animal feed.

Case means either a MIL-STD-129 defined exterior container within a palletized unit load or a MIL-STD-129 defined individual shipping container.

Electronic Product Code™ (EPC ®) means an identification scheme for universally identifying physical objects via RFID tags and other means. The standardized EPCTM data consists of an EPCTM (or EPCTM identifier) that uniquely identifies an individual object, as well as an optional filter value when judged to be necessary to enable effective and efficient reading of the EPCTM tags. In addition to this standardized data, certain classes of EPCTM tags will allow user-defined data. The EPCTM Tag Data Standards will define the length and position of this data, without defining its content.

EPCglobal ® means a subscriber-driven organization comprised of industry leaders and organizations

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SECTION D - PACKAGING AND MARKING (CONTINUED)

focused on creating global standards for the adoption of passive RFID technology.

Exterior container means a MIL-STD-129 defined container, bundle, or assembly that is sufficient by reason of material, design, and construction to protect unit packs and intermediate containers and their contents during shipment and storage. It can be a unit pack or a container with a combination of unit packs or intermediate containers. An exterior container may or may not be used as a shipping container.

Palletized unit load means a MIL-STD-129 defined quantity of items, packed or unpacked, arranged on a pallet in a specified manner and secured, strapped, or fastened on the pallet so that the whole palletized load is handled as a single unit. A palletized or skidded load is not considered to be a shipping container. A loaded 463L System pallet is not considered to be a palletized unit load. Refer to the Defense Transportation Regulation, DoD 4500.9-R, Part II, Chapter 203, for marking of 463L System pallets.

Passive RFID tag means a tag that reflects energy from the reader/interrogator or that receives and temporarily stores a small amount of energy from the reader/interrogator signal in order to generate the tag response. The only acceptable tags are EPC Class 1 passive RFID tags that meet the EPCglobal™ Class 1 Generation 2 standard.

Radio frequency identification (RFID) means an automatic identification and data capture technology comprising one or more reader/interrogators and one or more radio frequency transponders in which data transfer is achieved by means of suitably modulated inductive or radiating electromagnetic carriers.

Shipping container means a MIL-STD-129 defined exterior container that meets carrier regulations and is of sufficient strength, by reason of material, design, and construction, to be shipped safely without further packing (e.g., wooden boxes or crates, fiber and metal drums, and corrugated and solid fiberboard boxes).

(b)(1) Except as provided in paragraph (b)(2) of this clause, the Contractor shall affix passive RFID tags, at the case- and palletized- unit-load packaging levels, for shipments of items that -

(i) Are in any of the following classes of supply, as defined in DoD Manual 4140.01, Volume 6, DoD Supply Chain Materiel Management Procedures: Materiel Returns, Retention, and Disposition:

(A) Subclass of Class I - Packaged operational rations.

(B) Class II - Clothing, individual equipment, tentage, organizational tool kits, hand tools, and administrative and housekeeping supplies and equipment.

(C) Class IIIP - Packaged petroleum, lubricants, oils, preservatives, chemicals, and additives.

(D) Class IV - Construction and barrier materials.

(E) Class VI - Personal demand items (non-military sales items).

(F) Subclass of Class VIII - Medical materials (excluding pharmaceuticals, biologicals, and reagents - suppliers should limit the mixing of excluded and non-excluded materials).

(G) Class IX - Repair parts and components including kits, assemblies and subassemblies, repairable

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SECTION D - PACKAGING AND MARKING (CONTINUED)

and consumable items required for maintenance support of all equipment, excluding medical-peculiar repair parts; and

(ii) Are being shipped to one of the locations listed at https://www.acq.osd.mil/log/sci/RFID_ship-to-locations.html or to -

(A) A location outside the contiguous United States when the shipment has been assigned Transportation Priority 1, or to -

(B) The following location(s) deemed necessary by the requiring activity:

Contract line, subline, or exhibit line number	Location Name	City	State	DoDAAC
All contract items	VSTN - Peckham	Lansing	Michigan	SD0119

(2) The following are excluded from the requirements of paragraph (b)(1) of this clause:

(i) Shipments of bulk commodities.

(ii) Shipments to locations other than Defense Distribution Depots when the contract includes the clause at FAR 52.213-1, Fast Payment Procedures.

(c) The Contractor shall -

(1) Ensure that the data encoded on each passive RFID tag are globally unique (i.e., the tag ID is never repeated across two or more RFID tags) and conforms to the requirements in paragraph (d) of this clause;

(2) Use passive tags that are readable; and

(3) Ensure that the passive tag is affixed at the appropriate location on the specific level of packaging, in accordance with MIL-STD-129 (Section 4.9.2) tag placement specifications.

(d) Data syntax and standards. The Contractor shall encode an approved RFID tag using the instructions provided in the EPCTM Tag Data Standards in effect at the time of contract award. The EPCTM Tag Data Standards are available at <http://www.gs1.org/epc-rfid>.

(1) If the Contractor is an EPCglobal™ subscriber and possesses a unique EPCTM company prefix, the Contractor may use any of the identifiers and encoding instructions described in the most recent EPCTM Tag Data Standards document to encode tags.

(2) If the Contractor chooses to employ the DoD identifier, the Contractor shall use its previously assigned Commercial and Government Entity (CAGE) code and shall encode the tags in accordance with the tag identifier details located in the DoD Suppliers' Passive RFID Information Guide at https://www.acq.osd.mil/log/LOG/RFID_FAQs.html. If the Contractor uses a third-party packaging house to encode its tags, the CAGE code of the third-party packaging house is acceptable.

(3) Regardless of the selected encoding scheme, the Contractor with which the Department holds the

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SECTION D - PACKAGING AND MARKING (CONTINUED)

contract is responsible for ensuring that the tag ID encoded on each passive RFID tag is globally unique, per the requirements in paragraph (c)(1) of this clause.

(e) Advance shipment notice. The Contractor shall use Wide Area WorkFlow (WAWF), as required by DFARS 252.232-7003, Electronic Submission of Payment Requests, to electronically submit advance shipment notice(s) with the RFID tag ID(s) (specified in paragraph (d) of this clause) in advance of the shipment in accordance with the procedures at <https://wawf.eb.mil/>.

(End of clause)

SECTION E - INSPECTION AND ACCEPTANCE

52.246-2 INSPECTION OF SUPPLIES FIXED PRICE (AUG 1996) FAR

52.246-16 RESPONSIBILITY FOR SUPPLIES (APR 1984) FAR

E06 INSPECTION AND ACCEPTANCE AT SOURCE (JUN 2018)

Inspection and acceptance are at source. The place of acceptance is the location where the Government conducts the last inspection before shipment, unless the contractor indicated a different physical location for acceptance below.

The contractor shall indicate the location where supplies will be inspected, if different from the production location:

Commercial and Government Entity (CAGE) code:

Address:

Applicable to contract line item numbers(s) (CLIN(s)):

The contractor shall indicate the location where packaging will be inspected, if different from the production location:

☐ Same as for supplies OR

CAGE code:

Address:

Applicable to CLIN(s):

The contractor shall indicate the location where supplies will be accepted, if different from the inspection location:

Commercial and Government Entity (CAGE) code:

Address:

Applicable to contract line item numbers(s) (CLIN(s)):

SECTION F - DELIVERIES OR PERFORMANCE

The Government estimates that individual item quantities will be ordered according to the following tariff size percentages. These are only estimates - the Government is not bound to any particular distribution of sizes.

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SECTION F - DELIVERIES OR PERFORMANCE (CONTINUED)

PGC 03612 - NWU Type III Parka			
NIIN	Size	AMF	Tariff %
015734937	MEDIUM-REGULAR	689	16%
015734768	SMALL-REGULAR	576	14%
015734764	SMALL-SHORT	355	8%
015734950	MEDIUM-LONG	334	8%
015734933	MEDIUM-SHORT	298	7%
015734969	LARGE-REGULAR	289	7%
015734802	SMALL-LONG	229	5%
015866732	SMALL-XX-SHORT	223	5%
015734759	SMALL-X-SHORT	184	4%
015734974	LARGE-LONG	171	4%
015734927	MEDIUM-X-SHORT	158	4%
015866743	MEDIUM-XX-SHORT	144	3%
015734967	LARGE-SHORT	102	2%
015734955	MEDIUM-X-LONG	87	2%
015734804	SMALL-X-LONG	65	2%
015735033	X-LARGE-REGULAR	48	1%
015734686	X-SMALL-X-SHORT	49	1%
015734978	LARGE-X-LONG	53	1%
015735036	X-LARGE-LONG	43	1%
015734963	LARGE-X-SHORT	42	1%
015734771	X-SMALL-SHORT	28	1%
015866734	SMALL-XX-LONG	15	0%
015866772	MEDIUM-XX-LONG	14	0%
015735044	X-LARGE-X-LONG	17	0%
015734746	X-SMALL-REGULAR	14	0%
015734985	X-LARGE-SHORT	6	0%
015866776	LARGE-XX-LONG	6	0%
015735058	XX-LARGE-REGULAR	4	0%
015735051	XX-LARGE-LONG	5	0%
015734754	X-SMALL-LONG	3	0%
015866774	MEDIUM/XXX-LONG	2	0%
015867070	X-LARGE/XX-LONG	2	0%
015735055	XX-LARGE-X-LONG	2	0%
015866738	SMALL/XXX-LONG	1	0%
015867066	LARGE-XXX-LONG	1	0%
016877189	X-SMALL-XX-SHORT	1	0%
015867075	X-LARGE/XXX-LONG	0	0%
015867085	XX-LARGE/XX-LONG	0	0%
015867103	XX-LARGE-XXX-LONG	0	0%
016877191	X-SMALL-X-LONG	0	0%
016877192	XX-LARGE-SHORT	0	0%
016877194	XXX-LARGE-SHORT	0	0%
016877195	XXX-LARGE-REGULAR	0	0%
016877196	XXX-LARGE-LONG	0	0%
016877198	XXX-LARGE-X-LONG	0	0%
016877200	XXX-LARGE-XX- LONG	0	0%
016877202	XXX-LARGE-XXX- LONG	0	0%

52.242-15 STOP-WORK ORDER (AUG 1989) FAR

52.242-17 GOVERNMENT DELAY OF WORK (APR 1984) FAR

52.247-34 F.O.B. DESTINATION (JAN 1991) FAR

52.247-48 F.O.B. DESTINATION - EVIDENCE OF SHIPMENT (FEB 1999) FAR

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SECTION G - CONTRACT ADMINISTRATION DATA (CONTINUED)

SECTION G - CONTRACT ADMINISTRATION DATA

252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (PRE-FILLED) (JAN 2023) DFARS

As prescribed in [232.7004](#) (b), use the following clause:

(a) *Definitions.* As used in this clause -

Department of Defense Activity Address Code (DoDAAC) is a six position code that uniquely identifies a unit, activity, or organization.

Document type means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

Local processing office (LPO) is the office responsible for payment certification when payment certification is done external to the entitlement system.

Payment request and receiving report are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation System (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall -

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov> and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this Web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the “Web Based Training” link on the WAWF home page at <https://wawf.eb.mil/>.

(e) *WAWF methods of document submission.* Document submissions may be via Web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items -

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

Invoice (stand-alone) and Receiving Report (stand-alone) or Invoice and Receiving Report (combination)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

(Contracting Officer: Insert either “Invoice 2in1” or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF “combo” document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table *

Field Name in WAWF	Data to be entered in WAWF	Guidance
Pay Official DoDAAC	See Block 12 (SF26), 15 (DD 1155), or 18a (SF1449)	(If blank, see resulting award)
Issue By DoDAAC	See Block 5 (SF26), 6 (DD 1155), or 9 (SF1449)	(If blank, see resulting award)
Admin DoDAAC	See Block 6 (SF26), 7 (DD 1155), or 16 (SF1449)	(If blank, see resulting award)
Inspect By DoDAAC	SEE SECTION B	(If blank, see resulting award)
Ship To Code	SEE SECTION B	(If blank, see resulting award)
Ship From Code	SEE SECTION B	(If blank, see resulting award)
Mark For Code	SEE SECTION B	(If blank, see resulting award)
Service Approver (DoDAAC)		(If blank, see resulting award)

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SECTION G - CONTRACT ADMINISTRATION DATA (CONTINUED)

Field Name in WAWF	Data to be entered in WAWF	Guidance
Service Acceptor (DoDAAC)		(If blank, see resulting award)
Accept at Other DoDAAC		(If blank, see resulting award)
LPO DoDAAC		(If blank, see resulting award)
DCAA Auditor DoDAAC		(If blank, see resulting award)
Other DoDAAC(s)		(If blank, see resulting award)

(* Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")
(** Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.* (1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

See administer listed on page 1

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of Clause)

SECTION I - CONTRACT CLAUSES

52.204-7 System for Award Management --Registration (DEVIATION 2026-O0038) (FEB 2026)

52.204-13 System for Award Management --Maintenance (DEVIATION 2026-O0038) (FEB 2026)

52.209-6 Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded (DEVIATION 2026-O0038) (FEB 2026)

52.210-1 Market Research (DEVIATION 2026-O0038) (FEB 2026)

52.211-5 Material Requirements (DEVIATION 2026-O0038) (FEB 2026)

52.215-8 Order of Precedence-Uniform Contract Format (DEVIATION 2026-O0038) (FEB 2026)

252.215-7994 Requirements for Certified Cost of Pricing Data and Data Other Than Certified Cost or Pricing Data. (DEVIATION 2026-O0048) (MAR 2026)

252.215-7996 Notification to Offerors—Postaward Debriefings DEVIATION 2026-O0048 (MAR 2026)

52.216-22 Indefinite Quantity (DEVIATION 2026-O0038) (FEB 2026)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

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SECTION I - CONTRACT CLAUSES (CONTINUED)

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after **the last scheduled delivery**.

(End of clause)

52.219-6 Notice of Total Small Business Set-Aside (DEVIATION 2026-O0038) (FEB 2026)

(a) *Definition. Small business concern*, as used in this clause --

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in the field of operation in which it is bidding on Government contracts, and qualified as a small business under the size standards in this solicitation.

(2) *Affiliates*, as used in paragraph (a)(1) of this clause, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) *Applicability*. This clause applies only to-

(1) Contracts that have been set aside for small business concerns; and

(2) Orders set aside for small business concerns under multiple-award contracts as described in 8.4 and 16.5.

(c) *General*.

(1) Offers are solicited only from small business concerns. Offers received from concerns that are not small business concerns shall be considered nonresponsive and will be rejected.

(2) Any award resulting from this solicitation will be made to a small business concern.

(End of clause)

Alternate I (Mar 2020) . Substitute the following paragraph (c) for paragraph (c) of the basic clause:

(c) *General*.

(1) Offers are solicited only from small business concerns and Federal Prison Industries, Inc. (FPI). Offers received from concerns that are not small business concerns or FPI shall be considered nonresponsive and will be rejected.

(2) Any award resulting from this solicitation will be made to either a small business concern or FPI.

(End of clause)

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SECTION I - CONTRACT CLAUSES (CONTINUED)		
52.219-14 Limitations on Subcontracting (DEVIATION 2026-O0038) (FEB 2026)		
(a) This clause does not apply to the unrestricted portion of a partial set-aside.		
(b) <i>Definition. Similarly situated entity</i> , as used in this clause, means a first-tier subcontractor, including an independent contractor, that --		
(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and		
(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.		
(c) <i>Applicability</i> . This clause applies only to --		
(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);		
(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);		
(3) Contracts that have been awarded on a sole-source basis in accordance with sections 19.105, 19.106, 19.107, and 19.108;		
(4) Orders expected to exceed the simplified acquisition threshold and that are set aside for small business concerns under multiple-award contracts, as described in 8.4 and 16.5;		
(5) Orders, regardless of dollar value, that are set aside in accordance with sections 19.105, 19.106, 19.107, and 19.108 under multiple-award contracts, as described in 8.4 and 16.5; and		
(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.		
(d) <i>Independent contractors</i> . An independent contractor shall be considered a subcontractor.		
(e) By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for --		
(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;		
(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;		
(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or		
(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.		
(f) The Contractor shall comply with the limitations on subcontracting as follows:		
(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause --		
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SECTION I - CONTRACT CLAUSES (CONTINUED) [Contracting Officer check as appropriate.] (X) By the end of the base term of the contract and then by the end of each subsequent option period; or () By the end of the performance period for each order issued under the contract. (2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order. (g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants. (1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions. (2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions. (End of clause) 52.222-3 Convict Labor (DEVIATION 2026-O0038) (FEB 2026) 52.222-19 Child Labor-Cooperation with Authorities and Remedies (DEVIATION 2026-O0038) (FEB 2026) 52.222-35 Equal Opportunity for Veterans (DEVIATION 2026-O0038) (FEB 2026) 52.222-36 Equal Opportunity for Workers with Disabilities (DEVIATION 2026-O0038) (FEB 2026) 52.222-37 Employment Reports on Veterans (DEVIATION 2026-O0038) (FEB 2026) 52.222-40 Notification of Employee Rights Under the National Labor Relations Act (DEVIATION 2026-O0038) (FEB 2026) 52.222-54 Employment Eligibility Verification (DEVIATION 2026-O0038) (FEB 2026) 52.222-62 Paid Sick Leave Under Executive Order 13706 (DEVIATION 2026-O0038) (FEB 2026) 52.223-23 Sustainable Products (DEVIATION 2026-O0038) (FEB 2026) (a) <i>Definitions.</i> As used in this clause -- Sustainable product means -- (1) A product that contains recovered material designated by the EPA under the Comprehensive Procurement Guidelines (42 U.S.C. 6962) (40 CFR part 247) (https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg-program#products). (2) An energy-efficient product or low standby power device (42 U.S.C. 8259b) (10 CFR part 436, subpart C) (https://www.energy.gov/eere/femp/search-energy-efficient-products, https://www.energystar.gov/products?s=mega, and https://www.energy.gov/femp/low-standby-power-product-list). (3) A biobased product that meets the content requirements of the USDA under the BioPreferred® program (7 U.S.C. 8102) (7 CFR Part 4270) (https://www.biopreferred.gov/). (4) A substance identified in the EPA's Significant New Alternatives Policy (SNAP) program as a safe alternative to an ozone-depleting substance (42 U.S.C. 7671l) (40 CFR part 82, subpart G) (https://www. CONTINUED ON NEXT PAGE		

SECTION I - CONTRACT CLAUSES (CONTINUED)

[epa.gov/snap/unacceptable-and-acceptable-substitutes-tables](https://www.epa.gov/snap/unacceptable-and-acceptable-substitutes-tables)).

(b) *Requirements*. The Government has identified in the statement of work or elsewhere in the contract the sustainable products that are required during the performance of this contract. The Contractor shall ensure that it provides sustainable products as required by this contract, when the products are --

- (1) Delivered to the Government;
- (2) Furnished for use by the Government;
- (3) Incorporated into the construction of a public building or public work; or

(c) Furnished for use in performing services under this contract, where the cost of the products is a direct cost to this contract.

(End of clause)

52.229-3 Federal, State, and Local Taxes (DEVIATION 2026-O0038) (FEB 2026)**52.233-1 Disputes (DEVIATION 2026-O0038) (FEB 2026)****52.233-3 Protest after Award (DEVIATION 2026-O0038) (FEB 2026)****52.233-4 Applicable Law for Breach of Contract Claim (DEVIATION 2026-O0038) (FEB 2026)****52.240-93 Basic Safeguarding of Covered Contractor Information Systems (DEVIATION 2026-O0038) (FEB 2026)****252.240-7997 NIST SP 800-171 DoD Assessment Requirements (DEVIATION 2026-O0025) (FEB 2026)***(a) Definitions.*

Covered contractor information system has the meaning given in the clause 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, of this contract.

High Assessment means an assessment that is conducted by Government personnel, trained in accordance with DoD policy and procedures, using NIST SP 800-171A, Assessing Security Requirements for Controlled Unclassified Information that --

(1) Consists of --

(i) A review of a contractor's previous assessment(s), as applicable;

(ii) A thorough document review;

(iii) Verification, examination, and demonstration of a Contractor's system security plan to validate that NIST SP 800-171 security requirements have been implemented as described in the contractor's system security plan; and

(iv) Discussions with the contractor to obtain additional information or clarification, as needed; and

(2) Results in a confidence level of "High" in the resulting score.

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SECTION I - CONTRACT CLAUSES (CONTINUED)

Medium Assessment means an assessment conducted by Government personnel, trained in accordance with DoD policy and procedures, using NIST SP 800-171A, Assessing Security Requirements for Controlled Unclassified Information that --

(1) Consists of --

(i) A review of a contractor's previous assessment(s), as applicable;

(ii) A thorough document review; and

(iii) Discussions with the contractor to obtain additional information or clarification, as needed; and

(2) Results in a confidence level of "Medium" in the resulting score.

(b) *Applicability.* This clause applies to covered contractor information systems that are required to comply with the National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171, in accordance with Defense Federal Acquisition Regulation System (DFARS) clause at 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, of this contract.

(c) *Requirements.* The Contractor shall provide access to its facilities, systems, and personnel necessary for the Government to conduct a Medium or High NIST SP 800-171 DoD Assessment, using the methodology described at 32 CFR 170.24, if necessary. The results of Medium or High NIST SP 800-171 DoD Assessments, when conducted by DCMA, will take precedence over any other assessment, in accordance with 32 CFR 170.16(a)(1)(iv), 32 CFR 170.17(a)(1)(iv), and 32 CFR 170.18(a)(1)(iv).

(d) *Procedures.* Summary level scores for all assessments will be posted in the Supplier Performance Risk System (SPRS) (<https://www.sprs.csd.disa.mil/>) to provide DoD Components visibility into the summary level scores of strategic assessments.

Medium and High Assessments. DoD will post the following Medium and/or High Assessment summary level scores to SPRS for each system security plan assessed:

(i) The standard assessed (e.g., NIST SP 800-171 Rev 1).

(ii) Organization conducting the assessment, i.e., DCMA.

(iii) All industry CAGE code(s) associated with the information system(s) addressed by the system security plan.

(iv) Date and level of the assessment, i.e., medium or high.

(v) Summary level score (overall numerical score, not the individual value assigned for each requirement).

(vi) Date that all requirements are expected to be implemented based on information

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SECTION I - CONTRACT CLAUSES (CONTINUED)

gathered from associated plan(s) of action developed in accordance with NIST SP 800-171.

(e) *Rebuttals.* (1) DoD will provide Medium and High Assessment summary level scores to the Contractor and offer the opportunity for rebuttal and adjudication of assessment summary level scores prior to posting the summary level scores to SPRS (see SPRS User's Guide https://www.sprs.csd.disa.mil/pdf/SPRS_Awardee.pdf).

(2) Upon completion of each assessment, the contractor has 14 business days to provide additional information to demonstrate that they meet any security requirements not observed by the assessment team or to rebut the findings that may be of question.

(f) *Accessibility.* (1) Assessment summary level scores posted in SPRS are available to DoD personnel, and are protected, in accordance with the standards set forth in DoD Instruction 5000.79, Defense-wide Sharing and Use of Supplier and Product Performance Information (PI).

(2) Authorized representatives of the Contractor for which the assessment was conducted may access SPRS to view their own summary level scores, in accordance with the SPRS Software User's Guide for Awardees/Contractors available at https://www.sprs.csd.disa.mil/pdf/SPRS_Awardee.pdf.

(3) A High NIST SP 800-171 DoD Assessment may result in documentation in addition to that listed in this clause. DoD will retain and protect any such documentation as "Controlled Unclassified Information (CUI)" and intended for internal DoD use only. The information will be protected against unauthorized use and release, including through the exercise of applicable exemptions under the Freedom of Information Act (e.g., Exemption 4 covers trade secrets and commercial or financial information obtained from a contractor that is privileged or confidential).

(g) *Subcontracts.* The Contractor shall insert the substance of this clause, including this [paragraph \(g\)](#), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services (excluding commercially available off-the-shelf items).

(End of clause)

52.243-1 Changes-Fixed-Price (DEVIATION 2026-O0038) (FEB 2026)**52.253-1 Computer Generated Forms (DEVIATION 2026-O0038) (FEB 2026)****52.202-1 DEFINITIONS (JUN 2020) FAR****52.203-2 CERTIFICATE OF INDEPENDENT PRICE DETERMINATION (APR 1985) FAR**

As prescribed in [3.103-1](#), insert the following provision. If the solicitation is a Request for Quotations, the terms "Quotation" and "Quoter" may be substituted for "Offer" and "Offeror."

(a) The offeror certifies that.

(1) The prices in this offer have been arrived at independently, without, for the purpose of restricting competition, any consultation, communication, or agreement with any other offeror or competitor relating to.

(i) Those prices;

(ii) The intention to submit an offer; or

(iii) The methods or factors used to calculate the prices offered.

(2) The prices in this offer have not been and will not be knowingly disclosed by the offeror, directly or indirectly, to any other offeror or competitor before bid opening (in the case of a sealed bid solicitation) or contract award (in the case of a negotiated solicitation) unless otherwise required by law; and

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(3) No attempt has been made or will be made by the offeror to induce any other concern to submit or not to submit an offer for the purpose of restricting competition.

(b) Each signature on the offer is considered to be a certification by the signatory that the signatory.

(1) Is the person in the offeror's organization responsible for determining the prices being offered in this bid or proposal, and that the signatory has not participated and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; or

(2)(i) Has been authorized, in writing, to act as agent for the following principals in certifying that those principals have not participated, and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision [insert full name of person(s) in the offeror's organization responsible for determining the prices offered in this bid or proposal, and the title of his or her position in the offeror's organization];

(ii) As an authorized agent, does certify that the principals named in subdivision (b)(2)(i) of this provision have not participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; and

(iii) As an agent, has not personally participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision.

(c) If the offeror deletes or modifies paragraph (a)(2) of this provision, the offeror must furnish with its offer a signed statement setting forth in detail the circumstances of the disclosure.

(End of provision)

52.203-3 GRATUITIES (APR 1984) FAR

52.203-5 COVENANT AGAINST CONTINGENT FEES (MAY 2014) FAR

52.203-6 RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT (JUN 2020) FAR

52.203-7 ANTI-KICKBACK PROCEDURES (JUN 2020) FAR

52.203-8 CANCELLATION, RECISSION, AND RECOVERY OF FUNDS FOR ILLEGAL OR IMPROPER ACTIVITY (MAY 2014) FAR

52.203-10 PRICE OR FEE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY (MAY 2014) FAR

52.203-11 CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS (SEP 2007) FAR

52.203-12 LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS (JUN 2020) FAR

52.203-13 CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT (NOV 2021) FAR

52.203-14 DISPLAY OF HOTLINE POSTER (NOV 2021) FAR

As prescribed in [3.1004\(b\)](#), insert the following clause:

(a) Definition.

“United States,” as used in this clause, means the 50 States, the District of Columbia, and outlying areas.

(b) Display of fraud hotline poster(s). Except as provided in paragraph (c).

(1) During contract performance in the United States, the Contractor shall prominently display in common work areas within business segments performing work under this contract and at contract work sites.

(i) Any agency fraud hotline poster or Department of Homeland Security (DHS) fraud hotline poster identified in paragraph (b)(3) of this clause; and

(ii) Any DHS fraud hotline poster subsequently identified by the Contracting Officer.

(2) Additionally, if the Contractor maintains a company website as a method of providing information to employees, the Contractor shall display an electronic version of the poster(s) at the website.

(3) Any required posters may be obtained as follows:

Poster(s) Obtain from

(Contracting Officer shall insert ---

(i) Appropriate agency name(s) and/or title of applicable Department of Homeland Security fraud hotline poster); and

(ii) The website(s) or other contact information for obtaining the poster(s).)

(c) If the Contractor has implemented a business ethics and conduct awareness program, including a reporting mechanism, such as a hotline poster, then the Contractor need not display any agency fraud hotline posters as required in paragraph (b) of this clause, other than any required DHS posters.

(d) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (d), in all subcontracts that exceed the threshold specified in Federal Acquisition Regulation 3.1004(b)(1) on the date of subcontract award, except when the subcontract—

(1) Is for the acquisition of a commercial product or commercial service; or

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SECTION I - CONTRACT CLAUSES (CONTINUED) (2) Is performed entirely outside the United States. (End of clause) 52.203-18 PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS-REPRESENTATION (JAN 2017) FAR 252.203-7000 REQUIREMENTS RELATING TO COMPENSATION OF FORMER DOD OFFICIALS (SEP 2011) DFARS 252.203-7001 PROHIBITION ON PERSONS CONVICTED OF FRAUD OR OTHER DEFENSE-CONTRACT-RELATED FELONIES (JAN 2023) DFARS 252.203-7002 REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS (DEC 2022) DFARS 52.204-9 PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL (JAN 2011) FAR 52.204-19 INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS (DEC 2014) FAR 252.204-7003 CONTROL OF GOVERNMENT PERSONNEL WORK PRODUCT (APR 1992) DFARS 252.204-7009 LIMITATIONS ON THE USE OR DISCLOSURE OF THIRD-PARTY CONTRACTOR REPORTED CYBER INCIDENT INFORMATION (JAN 2023) DFARS DISREGARD DFARS 252.204-7009 (JAN 2023). IT DOES NOT APPLY TO THIS SOLICITATION. 252.204-7012 SAFEGUARDING COVERED DEFENSE INFORMATION AND CYBER INCIDENT REPORTING (DEVIATION 2024-O0013) (MAY 2024) DFARS (a) <i>Definitions.</i> As used in this clause <i>Adequate security</i> means protective measures that are commensurate with the consequences and probability of loss, misuse, or unauthorized access to, or modification of information. <i>Compromise</i> means disclosure of information to unauthorized persons, or a violation of the security policy of a system, in which unauthorized intentional or unintentional disclosure, modification, destruction, or loss of an object, or the copying of information to unauthorized media may have occurred. <i>Contractor attributional/proprietary information</i> means information that identifies the contractor(s), whether directly or indirectly, by the grouping of information that can be traced back to the contractor(s) (e.g., program description, facility locations), personally identifiable information, as well as trade secrets, commercial or financial information, or other commercially sensitive information that is not customarily shared outside of the company. <i>Controlled technical information</i> means technical information with military or space application that is subject to controls on the access, use, reproduction, modification, performance, display, release, disclosure, or dissemination. Controlled technical information would meet the criteria, if disseminated, for distribution statements B through F using the criteria set forth in DoD Instruction 5230.24, Distribution Statements on Technical Documents. The term does not include information that is lawfully publicly available without restrictions. <i>Covered contractor information system</i> means an unclassified information system that is owned, or operated by or for, a contractor and that processes, stores, or transmits covered defense information. <i>Covered defense information</i> means unclassified controlled technical information or other information, as described in the Controlled Unclassified Information (CUI) Registry at http://www.archives.gov/cui/registry/category-list.html, that requires safeguarding or dissemination controls pursuant to and consistent with law, regulations, and Governmentwide policies, and is -- (1) Marked or otherwise identified in the contract, task order, or delivery order and provided to the contractor by or on behalf of DoD in support of the performance of the contract; or (2) Collected, developed, received, transmitted, used, or stored by or on behalf of the contractor in support of the performance of the contract. CONTINUED ON NEXT PAGE		

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SECTION I - CONTRACT CLAUSES (CONTINUED)

Cyber incident means actions taken through the use of computer networks that result in a compromise or an actual or potentially adverse effect on an information system and/or the information residing therein.

Forensic analysis means the practice of gathering, retaining, and analyzing computer-related data for investigative purposes in a manner that maintains the integrity of the data.

Information system means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information.

Malicious software means computer software or firmware intended to perform an unauthorized process that will have adverse impact on the confidentiality, integrity, or availability of an information system. This definition includes a virus, worm, Trojan horse, or other code-based entity that infects a host, as well as spyware and some forms of adware.

Media means physical devices or writing surfaces including, but is not limited to, magnetic tapes, optical disks, magnetic disks, large-scale integration memory chips, and printouts onto which covered defense information is recorded, stored, or printed within a covered contractor information system.

Operationally critical support means supplies or services designated by the Government as critical for airlift, sealift, intermodal transportation services, or logistical support that is essential to the mobilization, deployment, or sustainment of the Armed Forces in a contingency operation.

Rapidly report means within 72 hours of discovery of any cyber incident.

Technical information means technical data or computer software, as those terms are defined in the clause at DFARS 252.227-7013, Rights in Technical Data --Other Than Commercial Products and Commercial Services, regardless of whether or not the clause is incorporated in this solicitation or contract.

Examples of technical information include research and engineering data, engineering drawings, and associated lists, specifications, standards, process sheets, manuals, technical reports, technical orders, catalog-item identifications, data sets, studies and analyses and related information, and computer software executable code and source code.

(b) *Adequate security.* The Contractor shall provide adequate security on all covered contractor information systems. To provide adequate security, the Contractor shall implement, at a minimum, the following information security protections:

(1) For covered contractor information systems that are part of an Information Technology (IT) service or system operated on behalf of the Government, the following security requirements apply:

- (i) Cloud computing services shall be subject to the security requirements specified in the clause 252.239-7010, Cloud Computing Services, of this contract.
- (ii) Any other such IT service or system (i.e., other than cloud computing) shall be subject to the security requirements specified elsewhere in this contract.

(2) For covered contractor information systems that are not part of an IT service or system operated on behalf of the Government and therefore are not subject to the security requirement specified at paragraph (b)(1) of this clause, the following security requirements apply:

(i) Except as provided in paragraph (b)(2)(ii) of this clause, the covered contractor information system shall be subject to the security requirements in National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171, "Protecting Controlled Unclassified Information in Nonfederal Information Systems and Organizations", Revision 2 (available via the internet at <http://dx.doi.org/10.6028/NIST.SP.800-171>).

(ii)(A) The Contractor shall implement NIST SP 800-171, as soon as practical, but not later than December 31, 2017. For all contracts awarded prior to October 1, 2017, the Contractor shall notify the DoD Chief Information Officer (CIO), via email at osd.dibcsia@mail.mil, within 30 days of contract award, of any security requirements specified by NIST SP 800-171 not implemented at the time of contract award.

(B) The Contractor shall submit requests to vary from NIST SP 800-171 in writing to the Contracting Officer, for consideration by the DoD CIO. The Contractor need not implement any security requirement adjudicated by an authorized representative of the DoD CIO to be nonapplicable or to have an alternative, but equally effective, security measure that may be implemented in its place.

(C) If the DoD CIO has previously adjudicated the contractor's requests indicating that a requirement is not applicable or that an alternative security measure is equally effective, a copy of that approval shall be provided to the Contracting Officer when requesting its recognition under this contract.

(D) If the Contractor intends to use an external cloud service provider to store, process, or transmit any covered defense information in performance of this contract, the Contractor shall require and ensure that the cloud service provider meets security requirements equivalent to those established by the Government for the Federal Risk and Authorization Management Program (FedRAMP) Moderate baseline (<https://www.fedramp.gov/resources/documents/>) and that the cloud service provider complies with requirements in paragraphs (c) through (g) of this clause for cyber incident reporting, malicious software, media preservation and protection, access to additional information and equipment necessary for forensic analysis, and cyber incident damage assessment.

(3) Apply other information systems security measures when the Contractor reasonably determines that information systems security measures, in addition to those identified in paragraphs (b)(1) and (2) of this clause, may be required to provide adequate security in a dynamic environment or to accommodate special circumstances (e.g., medical devices) and any individual, isolated, or temporary deficiencies based on an assessed risk or vulnerability. These

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CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED: SPE1C1-26-R-0066	PAGE 38 OF 81 PAGES
SECTION I - CONTRACT CLAUSES (CONTINUED) measures may be addressed in a system security plan. (c) <i>Cyber incident reporting requirement.</i> (1) When the Contractor discovers a cyber incident that affects a covered contractor information system or the covered defense information residing therein, or that affects the contractor's ability to perform the requirements of the contract that are designated as operationally critical support and identified in the contract, the Contractor shall -- (i) Conduct a review for evidence of compromise of covered defense information, including, but not limited to, identifying compromised computers, servers, specific data, and user accounts. This review shall also include analyzing covered contractor information system(s) that were part of the cyber incident, as well as other information systems on the Contractor's network(s), that may have been accessed as a result of the incident in order to identify compromised covered defense information, or that affect the Contractor's ability to provide operationally critical support; and (ii) Rapidly report cyber incidents to DoD at https://dibnet.dod.mil. (2) <i>Cyber incident report.</i> The cyber incident report shall be treated as information created by or for DoD and shall include, at a minimum, the required elements at https://dibnet.dod.mil. (3) <i>Medium assurance certificate requirement.</i> In order to report cyber incidents in accordance with this clause, the Contractor or subcontractor shall have or acquire a DoD-approved medium assurance certificate to report cyber incidents. For information on obtaining a DoD-approved medium assurance certificate, see https://public.cyber.mil/eca/. (d) <i>Malicious software.</i> When the Contractor or subcontractors discover and isolate malicious software in connection with a reported cyber incident, submit the malicious software to DoD Cyber Crime Center (DC3) in accordance with instructions provided by DC3 or the Contracting Officer. Do not send the malicious software to the Contracting Officer. (e) <i>Media preservation and protection.</i> When a Contractor discovers a cyber incident has occurred, the Contractor shall preserve and protect images of all known affected information systems identified in paragraph (c)(1)(i) of this clause and all relevant monitoring/packet capture data for at least 90 days from the submission of the cyber incident report to allow DoD to request the media or decline interest. (f) <i>Access to additional information or equipment necessary for forensic analysis.</i> Upon request by DoD, the Contractor shall provide DoD with access to additional information equipment that is necessary to conduct a forensic analysis. (g) <i>Cyber incident damage assessment activities.</i> If DoD elects to conduct a damage assessment, the Contracting Officer will request that the Contractor provide all of the damage assessment information gathered in accordance with paragraph (e) of this clause. (h) <i>DoD safeguarding and use of contractor attributional/proprietary information.</i> The Government shall protect against the unauthorized use or release of information obtained from the contractor (or derived from information obtained from the contractor) under this clause that includes contractor attributional/proprietary information, including such information submitted in accordance with paragraph (c). To the maximum extent practicable, the Contractor shall identify and mark attributional/proprietary information. In making an authorized release of such information, the Government will implement appropriate procedures to minimize the contractor attributional/proprietary information that is included in such authorized release, seeking to include only that information that is necessary for the authorized purpose(s) for which the information is being released. (i) <i>Use and release of contractor attributional/proprietary information not created by or for DoD.</i> Information that is obtained from the contractor (or derived from information obtained from the contractor) under this clause that is not created by or for DoD is authorized to be released outside of DoD -- (1) To entities with missions that may be affected by such information; (2) To entities that may be called upon to assist in the diagnosis, detection, or mitigation of cyber incidents; (3) To Government entities that conduct counterintelligence or law enforcement investigations; (4) For national security purposes, including cyber situational awareness and defense purposes (including with Defense Industrial Base (DIB) participants in the program at 32 CFR part 236); or (5) To a support services contractor ("recipient") that is directly supporting Government activities under a contract that includes the clause at 252.204-7009, Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information. (j) <i>Use and release of contractor attributional/proprietary information created by or for DoD.</i> Information that is obtained from the contractor (or derived from information obtained from the contractor) under this clause that is created by or for DoD (including the information submitted pursuant to paragraph (c) of this clause) is authorized to be used and released outside of DoD for purposes and activities authorized by paragraph (i) of this clause, and for any other lawful Government purpose or activity, subject to all applicable statutory, regulatory, and policy based restrictions on the Government's use and release of such information.		
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SECTION I - CONTRACT CLAUSES (CONTINUED)

(k) The Contractor shall conduct activities under this clause in accordance with applicable laws and regulations on the interception, monitoring, access, use, and disclosure of electronic communications and data.

(l) *Other safeguarding or reporting requirements.* The safeguarding and cyber incident reporting required by this clause in no way abrogates the Contractor's responsibility for other safeguarding or cyber incident reporting pertaining to its unclassified information systems as required by other applicable clauses of this contract, or as a result of other applicable U.S. Government statutory or regulatory requirements.

(m) *Subcontracts.* The Contractor shall --

(1) Include this clause, including this paragraph (m), in subcontracts, or similar contractual instruments, for operationally critical support, or for which subcontract performance will involve covered defense information, including subcontracts for commercial products or commercial services, without alteration, except to identify the parties. The Contractor shall determine if the information required for subcontractor performance retains its identity as covered defense information and will require protection under this clause, and, if necessary, consult with the Contracting Officer; and

(2) Require subcontractors to --

(i) Notify the prime Contractor (or next higher-tier subcontractor) when submitting a request to vary from a NIST SP 800-171 security requirement to the Contracting Officer, in accordance with paragraph (b)(2)(ii)(B) of this clause; and

(ii) Provide the incident report number, automatically assigned by DoD, to the prime Contractor (or next higher-tier subcontractor) as soon as practicable, when reporting a cyber incident to DoD as required in paragraph (c) of this clause.

(End of clause)

252.205-7000 PROVISION OF INFORMATION TO COOPERATIVE AGREEMENT HOLDERS (JUN 2023) DFARS

252.209-7004 SUBCONTRACTING WITH FIRMS THAT ARE OWNED OR CONTROLLED BY THE GOVERNMENT OF A COUNTRY THAT IS A STATE SPONSOR OF TERRORISM (MAY 2019) DFARS

52.215-14 INTEGRITY OF UNIT PRICES (NOV 2021) FAR

52.216-18 ORDERING (AUG 2020) FAR

As prescribed in [16.506\(a\)](#), insert the following clause:

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from **date of contract award** through **one (1) year after date of contract award**.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) If mailed, a delivery order or task order is considered "issued" when the Government deposits the order in the mail. Orders may be issued orally, by facsimile, or by electronic commerce methods only if authorized in the Schedule.

(End of clause)

52.216-19 ORDER LIMITATIONS (OCT 1995) FAR

As prescribed in [16.506\(b\)](#), insert a clause substantially the same as follows:

(a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than **1 unit** [insert dollar figure or quantity], the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) Maximum order. The Contractor is not obligated to honor --

(1) Any order for a single item in excess of **See Maximum Dollar Value under Section B** [insert dollar figure or quantity];

(2) Any order for a combination of items in excess of **See Maximum Dollar Value under Section B** [insert dollar figure or quantity]; or

(3) A series of orders from the same ordering office within **30** days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection [52.216-21](#) of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within **5** days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

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SECTION I - CONTRACT CLAUSES (CONTINUED) 252.219-7000 ADVANCING SMALL BUSINESS GROWTH (JUN 2023) FAR 52.222-50 COMBATING TRAFFICKING IN PERSONS (NOV 2021) FAR REMOVE FAR 52.222-50 (NOV 2021) AND REPLACE WITH 52.222-50 Combating Trafficking in Persons (DEVIATION 2026-O0038) (FEB 2026). 252.222-7006 RESTRICTIONS ON THE USE OF MANDATORY ARBITRATION AGREEMENTS (JAN 2023) DFARS 252.225-7002 QUALIFYING COUNTRY SOURCES AS SUBCONTRACTORS (MAR 2022) DFARS 252.225-7008 RESTRICTION ON ACQUISITION OF SPECIALTY METALS (MAR 2013) DFARS 252.225-7012 PREFERENCE FOR CERTAIN DOMESTIC COMMODITIES (APR 2022) DFARS (a) <i>Definitions.</i> As used in this clause -- “Component” means any item supplied to the Government as part of an end product or of another component. “End product” means supplies delivered under a line item of this contract. “Qualifying country” means a country with a reciprocal defense procurement memorandum of understanding or international agreement with the United States in which both countries agree to remove barriers to purchases of supplies produced in the other country or services performed by sources of the other country, and the memorandum or agreement complies, where applicable, with the requirements of section 36 of the Arms Export Control Act (22 U.S.C. 2776) and with 10 U.S.C. 2457. Accordingly, the following are qualifying countries: - Australia - Austria - Belgium - Canada - Czech Republic - Denmark - Egypt - Estonia - Finland - France - Germany - Greece - Israel - Italy - Japan - Latvia - Lithuania - Luxembourg - Netherlands - Norway - Poland - Portugal - Slovenia - Spain CONTINUED ON NEXT PAGE		

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SECTION I - CONTRACT CLAUSES (CONTINUED)

Sweden

Switzerland

Turkey

United Kingdom of Great Britain and Northern Ireland.

"Structural component of a tent" --

- (1) Means a component that contributes to the form and stability of the tent (e.g., poles, frames, flooring, guy ropes, pegs); and
- (2) Does not include equipment such as heating, cooling, or lighting.

"United States" means the 50 States, the District of Columbia, and outlying areas.

"U.S.-flag vessel" means a vessel of the United States or belonging to the United States, including any vessel registered or having national status under the laws of the United States.

(b) The Contractor shall deliver under this contract only such of the following items, either as end products or components, that have been grown, reprocessed, reused, or produced in the United States:

- (1) Food.
- (2) Clothing and the materials and components thereof, other than sensors, electronics, or other items added to, and not normally associated with, clothing and the materials components thereof. Clothing includes items such as outerwear, headwear, underwear, nightwear, footwear, hosiery, handwear, belts, badges, and insignia.
- (3)(i) Tents and structural components of tents;
 - (ii) Tarpaulins; or
 - (iii) Covers.
- (4) Cotton and other natural fiber products.
- (5) Woven silk or woven silk blends.
- (6) Spun silk yarn for cartridge cloth.
- (7) Synthetic fabric, and coated synthetic fabric, including all textile fibers and yarns that are for use in such fabrics.
- (8) Canvas products.
- (9) Wool (whether in the form of fiber or yarn or contained in fabrics, materials, or manufactured articles).
- (10) Any item of individual equipment (Federal Supply Class 8465) manufactured from or containing fibers, yarns, fabrics, or materials listed in this paragraph (b).

(c) This clause does not apply --

- (1) To items listed in section 25.104(a) of the Federal Acquisition Regulation, or other items for which the Government has determined that a satisfactory quality and sufficient quantity cannot be acquired as and when needed at U.S. market prices;
- (2) To incidental amounts of cotton, other natural fibers, or wool incorporated in an end product, for which the estimated value of the cotton, other natural fibers, or wool --
 - (i) Is not more than 10 percent of the total price of the end product; and
 - (ii) Does not exceed the threshold at Defense Federal Acquisition Regulation Supplement [225.7002-2\(a\)](#);
- (3) To waste and byproducts of cotton or wool fiber for use in the production of propellants and explosives;
- (4) To foods, other than fish, shellfish, or seafood, that have been manufactured or processed in the United States, regardless of where the foods (and any component if applicable) were grown or produced. Fish, shellfish, or seafood manufactured or processed in the United States and fish, shellfish, or seafood contained in foods manufactured or processed in the United States shall be provided in accordance with paragraph (d) of this clause;
- (5) To chemical warfare protective clothing produced in a qualifying country; or
- (6) To fibers and yarns that are for use in synthetic fabric or coated synthetic fabric (but does apply to the synthetic or coated synthetic fabric itself), if --
 - (i) The fabric is to be used as a component of an end product that is not a textile product. Examples of textile products, made in whole or in part of fabric, include $\frac{3}{4}$
 - (A) Draperies, floor coverings, furnishings, and bedding (Federal Supply Group 72, Household and Commercial Furnishings and Appliances);
 - (B) Items made in whole or in part of fabric in Federal Supply Group 83, Textile/leather/furs/apparel/findings/tents/flags, or Federal Supply Group 84, Clothing, Individual Equipment and Insignia;
 - (C) Upholstered seats (whether for household, office, or other use); and
 - (D) Parachutes (Federal Supply Class 1670); or

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SECTION I - CONTRACT CLAUSES (CONTINUED)

- (ii) The fibers and yarns are para-aramid fibers and continuous filament para-aramid yarns manufactured in a qualifying country.
 - (d)(1) Fish, shellfish, and seafood delivered under this contract, or contained in foods delivered under this contract --
 - (i) Shall be taken from the sea by U.S.-flag vessels; or
 - (ii) If not taken from the sea, shall be obtained from fishing within the United States; and
 - (2) Any processing or manufacturing of the fish, shellfish, or seafood shall be performed on a U.S.-flag vessel or in the United States.
- (End of clause)

252.225-7055 REPRESENTATION REGARDING BUSINESS OPERATIONS WITH THE MADURO REGIME (MAY 2022) DFARS

252.225-7056 PROHIBITION REGARDING BUSINESS OPERATIONS WITH THE MADURO REGIME (JAN 2023) DFARS

252.225-7057 PREAWARD DISCLOSURE OF EMPLOYMENT OF INDIVIDUALS WHO WORK IN THE PEOPLE'S REPUBLIC OF CHINA (AUG 2022) DFARS

252.225-7058 POSTAWARD DISCLOSURE OF EMPLOYMENT OF INDIVIDUALS WHO WORK IN THE PEOPLE'S REPUBLIC OF CHINA (JAN 2023) DFARS

52.226-8 ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (MAY 2024) FAR

252.226-7001 UTILIZATION OF INDIAN ORGANIZATIONS, INDIAN-OWNED ECONOMIC ENTERPRISES, AND NATIVE HAWAIIAN SMALL BUSINESS CONCERNS (JAN 2023) DFARS

52.227-1 AUTHORIZATION AND CONSENT (JUN 2020) FAR

52.227-2 NOTICE AND ASSISTANCE REGARDING PATENT AND COPYRIGHT INFRINGEMENT (JUN 2020) FAR

252.231-7000 SUPPLEMENTAL COST PRINCIPLES (DEC 1991) DFARS

52.232-1 PAYMENTS (APR 1984) FAR

52.232-8 DISCOUNTS FOR PROMPT PAYMENT (FEB 2002) FAR

52.232-11 EXTRAS (APR 1984) FAR

52.232-17 INTEREST (MAY 2014) FAR

52.232-23 ASSIGNMENT OF CLAIMS (MAY 2014) FAR

52.232-25 PROMPT PAYMENT (JAN 2017) FAR

52.232-33 PAYMENT BY ELECTRONIC FUNDS TRANSFER-SYSTEM FOR AWARD MANAGEMENT (OCT 2018) FAR

52.232-40 PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (MAR 2023) FAR

252.232-7003 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS AND RECEIVING REPORTS (DEC 2018) DFARS

252.232-7010 LEVIES ON CONTRACT PAYMENTS (DEC 2006) DFARS

52.242-13 BANKRUPTCY (JUL 1995) FAR

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SECTION I - CONTRACT CLAUSES (CONTINUED)

252.243-7001 PRICING OF CONTRACT MODIFICATIONS (DEC 1991) DFARS

252.243-7002 REQUESTS FOR EQUITABLE ADJUSTMENTS (DEC 2022) DFARS

As prescribed in [243.205-71](#), use the following clause:

(a) The amount of any request for equitable adjustment to contract terms shall accurately reflect the contract adjustment for which the Contractor believes the Government is liable. The request shall include only costs for performing the change, and shall not include any costs that already have been reimbursed or that have been separately claimed. All indirect costs included in the request shall be properly allocable to the change in accordance with applicable acquisition regulations.

(b) In accordance with [10 U.S.C. 3862\(a\)](#), any request for equitable adjustment to contract terms that exceeds the simplified acquisition threshold shall bear, at the time of submission, the following certificate executed by an individual authorized to certify the request on behalf of the Contractor:

I certify that the request is made in good faith, and that the supporting data are accurate and complete to the best of my knowledge and belief.

(Official's Name)

(Title)

(c) The certification in paragraph (b) of this clause requires full disclosure of all relevant facts, including -

(1) Certified cost or pricing data if required in accordance with [subsection 15.403-4](#) of the Federal Acquisition Regulation (FAR); and
(2) Data other than certified cost or pricing data, in accordance with [subsection 15.403-3](#) of the FAR, including actual cost data and data to support any estimated costs, even if certified cost or pricing data are not required.

(d) The certification requirement in paragraph (b) of this clause does not apply to -

(1) Requests for routine contract payments; for example, requests for payment for accepted supplies and services, routine vouchers under a cost-reimbursement type contract, or progress payment invoices; or
(2) Final adjustment under an incentive provision of the contract.

(End of clause)

52.246-17 WARRANTY OF SUPPLIES OF A NONCOMPLEX NATURE (JUN 2003) FAR

As prescribed in [46.710\(a\)\(1\)](#), insert a clause substantially as follows:

(a) Definitions. As used in this clause.

“Acceptance” means the act of an authorized representative of the Government by which the Government assumes for itself, or as an agent of another, ownership of existing supplies, or approves specific services as partial or complete performance of the contract.

“Supplies” means the end items furnished by the Contractor and related services required under this contract. The word does not include “data.”

(b) Contractor's obligations.

(1) Notwithstanding inspection and acceptance by the Government of supplies furnished under this contract, or any condition of this contract concerning the conclusiveness thereof, the Contractor warrants that for **one year after delivery** [Contracting Officer shall state specific period of time after delivery, or the specified event whose occurrence will terminate the warranty period; e.g., the number of miles or hours of use, or combinations of any applicable events or periods of time].

(i) All supplies furnished under this contract will be free from defects in material or workmanship and will conform with all requirements of this contract; and
(ii) The preservation, packaging, packing, and marking, and the preparation for, and method of, shipment of such supplies will conform with the requirements of this contract.

(2) When return, correction, or replacement is required, transportation charges and responsibility for the supplies while in transit shall be borne by the Contractor. However, the Contractor's liability for the transportation charges shall not exceed an amount equal to the cost of transportation by the usual commercial method of shipment between the place of delivery specified in this contract and the Contractor's plant, and return.

(3) Any supplies or parts thereof, corrected or furnished in replacement under this clause, shall also be subject to the terms of this clause to the same extent as supplies initially delivered. The warranty, with respect to supplies or parts thereof, shall be equal in duration to that in paragraph (b)(1) of this clause and shall run from the date of delivery of the corrected or replaced supplies.

(4) All implied warranties of merchantability and “fitness for a particular purpose” are excluded from any obligation contained in this contract.

(c) Remedies available to the Government.

(1) The Contracting Officer shall give written notice to the Contractor of any breach of warranties in paragraph (b)(1) of this clause within **45 days after discovery of defect** [Contracting Officer shall insert specific period of time; e.g., “45 days of the last delivery under this contract,” or “45 days after discovery of the defect”].

(2) Within a reasonable time after the notice, the Contracting Officer may either.

(i) Require, by written notice, the prompt correction or replacement of any supplies or parts thereof (including preservation, packaging, packing, and marking) that do not conform with the requirements of this contract within the meaning of paragraph (b)(1) of this clause; or

(ii) Retain such supplies and reduce the contract price by an amount equitable under the circumstances.

(3)(i) If the contract provides for inspection of supplies by sampling procedures, conformance of supplies or components subject to warranty action shall be determined by the applicable sampling procedures in the contract. The Contracting Officer.

(A) May, for sampling purposes, group any supplies delivered under this contract;

(B) Shall require the size of the sample to be that required by sampling procedures specified in the contract for the quantity of supplies on which warranty action is proposed;

(C) May project warranty sampling results over supplies in the same shipment or other supplies contained in other shipments even though all of such supplies are not present at the point of reinspection; provided, that the supplies remaining are reasonably representative of the quantity on which warranty action is proposed; and

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(D) Need not use the same lot size as on original inspection or reconstitute the original inspection lots.

(ii) Within a reasonable time after notice of any breach of the warranties specified in paragraph (b)(1) of this clause, the Contracting Officer may exercise one or more of the following options:

(A) Require an equitable adjustment in the contract price for any group of supplies.

(B) Screen the supplies grouped for warranty action under this clause at the Contractor's expense and return all nonconforming supplies to the Contractor for correction or replacement.

(C) Require the Contractor to screen the supplies at locations designated by the Government within the contiguous United States and to correct or replace all nonconforming supplies.

(D) Return the supplies grouped for warranty action under this clause to the Contractor (irrespective of the f.o.b. point or the point of acceptance) for screening and correction or replacement.

(4)(i) The Contracting Officer may, by contract or otherwise, correct or replace the nonconforming supplies with similar supplies from another source and charge to the Contractor the cost occasioned to the Government thereby if the Contractor.

(A) Fails to make redelivery of the corrected or replaced supplies within the time established for their return; or

(B) Fails either to accept return of the nonconforming supplies or fails to make progress after their return to correct or replace them so as to endanger performance of the delivery schedule, and in either of these circumstances does not cure such failure within a period of 10 days (or such longer period as the Contracting Officer may authorize in writing) after receipt of notice from the Contracting Officer specifying such failure.

(ii) Instead of correction or replacement by the Government, the Contracting Officer may require an equitable adjustment of the contract price. In addition, if the Contractor fails to furnish timely disposition instructions, the Contracting Officer may dispose of the nonconforming supplies for the Contractor's account in a reasonable manner. The Government is entitled to reimbursement from the Contractor, or from the proceeds of such disposal, for the reasonable expenses of the care and disposition of the nonconforming supplies, as well as for excess costs incurred or to be incurred.

(5) The rights and remedies of the Government provided in this clause are in addition to and do not limit any rights afforded to the Government by any other clause of this contract.

(End of clause)

52.246-23 LIMITATION OF LIABILITY (FEB 1997) FAR

252.247-7023 TRANSPORTATION OF SUPPLIES BY SEA --- BASIC (OCT 2024) DFARS

Basic. As prescribed in [247.574\(b\)](#) and (b)(1), use the following clause:

(a) Definitions. As used in this clause --

“Foreign-flag vessel” means any vessel that is not a U.S.-flag vessel.

“Ocean transportation” means any water-borne transportation aboard a ship, vessel, boat, barge, ferry, or the like outside the internal waters of the United States as defined in 33 CFR 2.24.

“Subcontractor” means a supplier, materialman, distributor, or vendor at any level below the prime contractor whose contractual obligation to perform results from, or is conditioned upon, award of the prime contract and who is performing any part of the work or other requirement of the prime contract.

“Supplies” means supplies that are clearly identifiable for eventual use by or owned by DoD at the time of transportation by sea, or are otherwise transported by DoD, regardless of ownership or use by DoD. An item is clearly identifiable for eventual use by DoD if, for example, the contract documentation contains a reference to a DoD contract number or a military destination.

“U.S.-flag vessel” means either a vessel belonging to the United States or a vessel of the United States as that term is defined in 46 U.S.C. 116.:

(b)(1) The Contractor shall use U.S.-flag vessels when transporting any supplies by sea under this contract.

(2) A subcontractor transporting supplies by sea under this contract shall use U.S.-flag vessels if --

(i) This contract is a construction contract; or

(ii) The supplies being transported are --

(A) Other than commercial products; or

(B) Commercial products that --

(1) The Contractor is reselling or distributing to the Government without adding value (generally, the Contractor does not add value to items that it subcontracts for f.o.b. destination shipment);

(2) Are shipped in direct support of U.S. military contingency operations, exercises, or forces deployed in humanitarian or peacekeeping operations; or

(3) Are commissary or exchange cargoes transported outside of the Defense Transportation System in accordance with 10 U.S.C. 2643.

(c) The Contractor and its subcontractors may request, via the Contracting Officer, a waiver of the requirement to use a U.S.-flag vessel, or identification of any available U.S.-flag vessels, if the Contractor or a subcontractor sufficiently explains that --

(1) U.S.-flag vessels are not available at a fair and reasonable rate for commercial vessels of the United States; or

(2) U.S.-flag vessels are otherwise not available.

(d) The Contractor must submit any request for use of foreign-flag vessels in writing to the Contracting Officer at least 45 days prior to the sailing date necessary to meet its delivery schedules. The Contracting Officer will process requests submitted after such date(s) as expeditiously as possible, however, if a DoD waiver is not approved prior to shipper's sailing date, this will not of itself constitute a compensable delay under this or any other clause of this contract. Requests shall contain at a minimum --

(1) Type, weight, and cube of cargo;

(2) Required shipping date;

(3) Special handling and discharge requirements;

(4) Loading and discharge points;

(5) Name of shipper and consignee;

(6) Prime contract number; and

(7) A documented description of current, diligent efforts made to secure U.S.-flag vessels, including points of contact (with names and telephone numbers)

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SECTION I - CONTRACT CLAUSES (CONTINUED)

with at least two U.S.-flag carriers contacted. Copies of quotes will suffice for this purpose. Copies of telephone notes, emails, and other relevant communications will otherwise be considered for this purpose.

(e) The Contractor shall, within 30 days after each shipment covered by this clause, provide the Contracting Officer and the Maritime Administration, Office of Cargo Preference, U.S. Department of Transportation, 400 Seventh Street SW, Washington, DC 20590, one copy of the rated on board vessel operating carrier's ocean bill of lading, which shall contain the following information:

- (1) Prime contract number;
- (2) Name of vessel;
- (3) Vessel flag of registry;
- (4) Date of loading;
- (5) Port of loading;
- (6) Port of final discharge;
- (7) Description of commodity;
- (8) Gross weight in pounds and cubic feet if available;
- (9) Total ocean freight in U.S. dollars; and
- (10) Name of the carrier.

(f) If this contract exceeds the simplified acquisition threshold, the Contractor shall provide with its final invoice under this contract a representation that to the best of its knowledge and belief --

- (1) No ocean transportation was used in the performance of this contract;
- (2) Ocean transportation was used and only U.S.-flag vessels were used for all ocean shipments under the contract;
- (3) Ocean transportation was used, and the Contractor had received a prior-approved waiver for U.S.-flag vessels for all foreign-flag ocean transportation; or
- (4) Ocean transportation was used and some or all of the shipments were made on foreign-flag vessels without the written consent of DoD. The Contractor shall describe these shipments in the following format:

*	ITEM DESCRIPTION	CONTRACT LINE ITEMS	QUANTITY
TOTAL			

(g) If this contract exceeds the simplified acquisition threshold and the final invoice does not include the required representation, the Government will reject and return it to the Contractor as an improper invoice for the purposes of the Prompt Payment clause of this contract. In the event there has been unauthorized use of foreign-flag vessels in the performance of this contract, the Contracting Officer is entitled to equitably adjust the contract, based on the unauthorized use.

(h) If the Contractor indicated in response to the solicitation provision, Representation of Extent of Transportation by Sea, that it did not anticipate transporting by sea any supplies; however, after the award of this contract, the Contractor learns that supplies will be transported by sea, the Contractor --

- (1) Shall notify the Contracting Officer of that fact; and
- (2) Hereby agrees to comply with all the terms and conditions of this clause.

(i) Subcontracts. In the award of subcontracts, for the types of supplies described in paragraph (b)(2) of this clause, including subcontracts for commercial products, the Contractor shall flow down the requirements of this clause as follows:

- (1) The Contractor shall insert the substance of this clause, including this paragraph (i), in subcontracts that exceed the simplified acquisition threshold in part 2 of the Federal Acquisition Regulation.
- (2) The Contractor shall insert the substance of paragraphs (a) through (e) of this clause, and this paragraph (i), in subcontracts that are at or below the simplified acquisition threshold in part 2 of the Federal Acquisition Regulation.

(End of clause)

52.249-2 TERMINATION FOR CONVENIENCE OF THE GOVERNMENT (FIXED-PRICE) (APR 2012) FAR

52.249-8 DEFAULT (FIXED-PRICE SUPPLY AND SERVICE) (APR 1984) FAR

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998) FAR

As prescribed in 52.107(a), insert the following provision:

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

FAR: <https://www.acquisition.gov/?q=browsefar>

DFARS: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

DLAD: <http://www.dla.mil/HQ/Acquisition/Offers/DLAD.aspx>

(End of provision)

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52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998) FAR

As prescribed in 52.107(b), insert the following clause:

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR: <https://www.acquisition.gov/?q=browsefar>

DFARS: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

DLAD: <http://www.dla.mil/HQ/Acquisition/Offers/DLAD.aspx>

(End of clause)

52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020) FAR

As prescribed in 52.107(e), insert the following provision in solicitations that include any FAR or supplemental provision with an authorized deviation.

Whenever any FAR or supplemental provision is used with an authorized deviation, the contracting officer shall identify it by the same number, title, and date assigned to the provision when it is used without deviation, include regulation name for any supplemental provision, except that the contracting officer shall insert "(DEVIATION)" after the date of the provision.

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any DoD FAR Supplement (DFARS) (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Provision)

252.204-7018 PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES (JAN 2023) DFARS

252.204-7024 NOTICE ON THE USE OF THE SUPPLIER PERFORMANCE RISK SYSTEM (MAR 2023) DFARS

252.225-7048 EXPORT CONTROLLED ITEMS (JUN 2013) DFARS

252.225-7051 PROHIBITION ON ACQUISITION OF CERTAIN FOREIGN COMMERCIAL SATELLITE SERVICES (DEC 2022) DFARS

252.239-7098 PROHIBITION ON CONTRACTING TO MAINTAIN OR ESTABLISH A COMPUTER NETWORK UNLESS SUCH NETWORK IS DESIGNED TO BLOCK ACCESS TO CERTAIN WEBSITES---REPRESENTATION (DEVIATION 2021-O0003) (APR 2021)

Include the following provision in all solicitations, including solicitations for the acquisition of commercial items under FAR part 12, that will use funds made available by the Consolidated Appropriations Act, 2021 (Pub. L. 116-260), or any other Act that extends to fiscal year 2021 funds the same prohibitions as contained in section 8116, division C, title VIII, of the Consolidated Appropriations Act, 2021 (Pub. L. 116-260).

(a) In accordance with section 8116 of Division C of the Consolidated Appropriations Act, 2021 (Pub. L. 116-260), or any other Act that extends to fiscal year 2021 funds the same prohibitions, none of the funds appropriated (or otherwise made available) by this or any other Act for DoD may be used to enter into a contract to maintain or establish a computer network unless such network is designed to block access to pornography websites. This prohibition does not limit the use of funds necessary for any Federal, State, tribal, or local law enforcement agency or any other entity carrying out criminal investigations, prosecution, or adjudication activities, or for any activity necessary for the national defense, including intelligence activities.

(b) *Representation.* By submission of its offer, the Offeror represents that it is not providing as part of its offer a proposal to maintain or establish a computer network unless such network is designed to block access to pornography websites.

(End of provision)

52.204-23 PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB COVERED ENTITIES (DEC 2023) FAR

52.204-25 PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021) FAR

52.204-27 PROHIBITION ON A BYTEDANCE COVERED APPLICATION (JUN 2023) FAR

52.204-30 FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS -- PROHIBITION (DEC 2023) FAR

DISREGARD DFARS 252.225-7048 (JUN 2013) AND 252.239-7098 (DEVIATION 2021-O0003) (APR

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2021). THEY DO NOT APPLY TO THIS SOLICITATION.

REMOVE FAR 52.204-23 (DEC 2023), FAR 52.204-25 (NOV 2021), 52.204-27 (JUN 2023), AND 52.204-30 (DEC 2023). INSTEAD, REFERENCE **52.240-91 Security Prohibitions and Exclusions (DEVIATION 2026-O0038) (FEB 2026)** IN SECTION K.

52.232-39 UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS (JUN 2013) FAR

SECTION J - LIST OF ATTACHMENTS

List of Attachments

Description	File Name
ATTACH_AQAR	AQAR - Aug 2021.pdf
ATTACH_DIBBS_Upload_Offer_Guidance	DIBBS Upload Offer Guidance.pdf
ATTACH_NCTRF_PD_04_09_SQIN	NCTRF PD 04-09 SQIN.pdf
ATTACH_NCTRF_PD_04_09C	NCTRF PD 04-09C Parka Working.pdf
ATTACH_NCTRF_PD_06_11_Cloth	NCTRF PD 06-11 Cloth.pdf
ATTACH_RFID_Guide	RFID Guide - Dec 2011. PDF
ATTACH_Tech_Data	Tech and Quality Requirements - NWU Parka.pdf
ATTACH_UPC_List	UPC List - NWU Type III Parkas.pdf

SECTION K - REPRESENTATIONS, CERTIFICATIONS AND STATEMENTS

52.204-90 Offeror Identification (DEVIATION 2026-O0038) (FEB 2026)

If the Offeror will not have an active Federal Government contracts registration in the System for Award Management (<https://www.sam.gov>) when submitting its offer, it shall complete paragraphs (c) and (d) of this provision and include its responses with its offer.

(a) *Definitions*. As used in this provision --

Commercial and Government Entity (CAGE) code has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

Common parent means that corporate entity that owns or controls an affiliated group of corporations that files its Federal income tax returns on a consolidated basis, and of which the offeror is a member.

Electronic Funds Transfer (EFT) indicator means a bank account identifier to establish additional System for Award Management records for identifying alternative EFT accounts (see part 32) for the same entity.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest-level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of

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SECTION K - REPRESENTATIONS, CERTIFICATIONS AND STATEMENTS (CONTINUED)

employees. There may be more than one immediate owner (e.g., joint ventures).

Predecessor means an entity whose assets were acquired by the offeror or another entity (most often through merger or acquisition) and whose affairs are now carried out by the offeror or the other entity under a new name.

Taxpayer Identification Number means the number required by the Internal Revenue Service (IRS) to be used by the offeror to report income tax and other returns. It may be either a Social Security Number or an Employer Identification Number.

Unique entity identifier (UEI) has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

(b) *Unique entity identifier (UEI)*.

(1) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the UEI that identifies the Offeror's name and address exactly as stated in the offer. The Offeror shall also enter its EFT indicator, if applicable.

(2) If the Offeror does not have a UEI, it shall go to <https://www.sam.gov> to obtain one. The Government will independently validate the existence and uniqueness of the Offeror before assigning a UEI.

(c) *Taxpayer identification*. The Offeror shall provide with its offer the following information that is necessary to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d); reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M; and the implementing IRS regulations:

(1) Taxpayer identification number (TIN)

☐ TIN: _____;

☐ TIN has been applied for; or

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government; or

☐ Offeror is an agency or instrumentality of the Federal Government.

(2) *Type of organization*.

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR 1.6049-4; or

☐ Other.

(3) *Common parent*.

☐ Offeror is not owned or controlled by a common parent as defined in paragraph (a) of this provision; or

☐ Name and TIN of common parent:

Name: _____

TIN: _____

(4) The TIN provided in paragraph (c)(1) of this provision may be matched with IRS records to verify the accuracy of the Offeror's TIN. The Government may use the TIN to collect and report on any delinquent amounts arising out of the Offeror's relationship with the Government (31 U.S.C. 7701(c)(3)).

(d) Commercial and Government Entity (CAGE) code.

(1) The Offeror shall provide its CAGE code with its offer with its name and location address or otherwise

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SECTION K - REPRESENTATIONS, CERTIFICATIONS AND STATEMENTS (CONTINUED)

include it prominently in its offer. The CAGE code shall be for that name and location address. Insert the word "CAGE" before the code. The Offeror may obtain a CAGE code as indicated in the following table.

If the Offeror is...	Then...
Located in the United States or its outlying areas	Submit a request to the DLA CAGE Branch via https://cage.dla.mil
Located outside the United States and its outlying areas and its country is a member of the North Atlantic Treaty Organization (NATO) or a sponsored nation	Contact the appropriate National Codification Bureau (https://www.nato.int/structur/ac135/about/contacts)
Located outside the United States and its outlying areas and its country is not a member of NATO or a sponsored nation	Contact the NATO Support and Procurement Agency (NSPA) (https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx)

(2) The Offeror shall provide the CAGE code and legal business name (Do not use a "doing business as" name) for --

- (i) Its immediate owner(s), if any;
- (ii) Its highest-level owner, if any; and
- (iii) Any predecessor(s), or predecessor of an Offeror's predecessor, that held a Federal contract or grant within the last three years.

Owner Type	CAGE Code	Legal Business Name
Immediate Owner		
Highest-Level Owner		
Predecessor*		

* Predecessor CAGE code may be marked "Unknown."

(3) If the Offeror has more than one immediate owner (such as a joint venture), give the information for each owner (or joint venture participant). If the Offeror has more than one predecessor, provide information for each predecessor in reverse chronological order.

(End of provision)

52.204-91 Contractor Identification (DEVIATION 2026-O0038) (FEB 2026)

(a) *Definitions.* As used in this clause --

Commercial and Government Entity code means --

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location (referred to as "CAGE code"); or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA CAGE Branch records and maintains in the CAGE master file (referred to as "NCAGE code").

Unique entity identifier means an identifier used to identify a specific commercial, nonprofit, or Government entity.

(b) *Unique entity identifier (UEI).* The Contractor shall ensure that its UEI is maintained throughout the life of the contract.

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SECTION K - REPRESENTATIONS, CERTIFICATIONS AND STATEMENTS (CONTINUED)

(c) *Commercial and Government Entity (CAGE) code.* The Contractor shall ensure that the CAGE code is maintained throughout the life of the contract. The Contractor shall request changes to a CAGE code as indicated in the following table.

If the Contractor is...	Then...
Registered in the System for Award Management (SAM)	Initiate the change by updating its SAM registration
Located in the United States or its outlying areas and is not registered in SAM	Submit a change request to the DLA CAGE Branch via https://cage.dla.mil
Located outside the United States and its outlying areas and is not registered in SAM	Request a change by contacting the appropriate National Codification Bureau (https://www.nato.int/structur/ac/135/about/contacts) or NSPA (https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx)

(d) *Communicating changes.* The Contractor shall communicate any change to its UEI or CAGE code to the Contracting Officer within 30 days after the change, so a modification can be issued to update the UEI or CAGE code on this contract. A change in the UEI does not necessarily require a novation.

(End of clause)

252.204-7007 Alternate A, Annual Representations and Certifications (OCT 2025)

Substitute the following paragraphs (b), (d), and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8 (reference FAR 52.204-90):

(b)(1) If the provision at FAR 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

___ (i) Paragraph (e) applies.

___ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016 , Covered Defense Telecommunications Equipment or Services—Representation. Applies to all solicitations.

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(ii) 252.216-7008 , Economic Price Adjustment—Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042 , Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049 , Prohibition on Acquisition of Certain Foreign Commercial Satellite Services—Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$200,000 or more.

(vi) 252.229-7012 , Tax Exemptions (Italy)—Representation. Applies to solicitations and contracts when contract performance will be in Italy.

(vii) 252.229-7013 , Tax Exemptions (Spain)—Representation. Applies to solicitations and contracts when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: [Contracting Officer check as appropriate.]

___ (i) 252.209-7002 , Disclosure of Ownership or Control by a Foreign Government.

___ (ii) 252.225-7000 , Buy American—Balance of Payments Program Certificate.

___ (iii) 252.225-7020 , Trade Agreements Certificate.

___ Use with Alternate I.

___ (iv) 252.225-7031 , Secondary Arab Boycott of Israel.

___ (v) 252.225-7035 , Buy American—Free Trade Agreements—Balance of Payments Program Certificate.

___ Use with Alternate I.

___ Use with Alternate II.

___ Use with Alternate III.

___ Use with Alternate IV.

___ Use with Alternate V.

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___ (vi) 252.226-7002 , Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

___ (vii) 252.232-7015 , Performance-Based Payments—Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov> . After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204–8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [Offeror to insert changes, identifying change by provision number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS Provision #	Title	Date	Change

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

52.209-5 Certification Regarding Responsibility Matters (DEVIATION 2026-O0038) (FEB 2026)

(a) (1) The Offeror certifies, to the best of its knowledge and belief, that --

(i) The Offeror and/or any of its Principals --

(A) Are ☐ are not ☐ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have ☐ have not ☐, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see 52.209-7, if included in this solicitation);

(C) Are ☐ are not ☐ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision; and

(D) Have ☐, have not ☐, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied. Federal taxes are considered delinquent if both of the following criteria apply:

(1) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if a pending administrative or judicial challenge remains. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

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(2) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) The Offeror has ☐ has not ☐, within a 3-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) "Principal," for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the Government will consider the certification in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror nonresponsible.

(d) This provision does not require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a). The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of provision)

52.209-7 Information Regarding Responsibility Matters (DEVIATION 2026-O0038) (FEB 2026)

(a) *Definitions.* As used in this provision --

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means --

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of

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SECTION K - REPRESENTATIONS, CERTIFICATIONS AND STATEMENTS (CONTINUED)

this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in -

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.209-9 Updates of Publicly Available Information Regarding Responsibility Matters (DEVIATION 2026-O0038) (FEB 2026)

52.209-10 Prohibition on Contracting With Inverted Domestic Corporations (DEVIATION 2026-O0038) (FEB 2026)

52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (DEVIATION 2026-O0038) (FEB 2026)

(a) The Government will not enter into a contract with any corporation that --

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that -

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax

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liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

52.209-13 Violation of Arms Control Treaties or Agreements-Certification (DEVIATION 2026-O0038) (FEB 2026)

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation 2.101.

(b) *Certification.* [Offeror shall check either (1) or (2).]

☐ (1) The Offeror certifies that -

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or

☐ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If such activity might have occurred, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

(i) An inability to certify compliance.

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SECTION K - REPRESENTATIONS, CERTIFICATIONS AND STATEMENTS (CONTINUED) (ii) An inability to conclude compliance. (iii) A statement about compliance concerns. (3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns. (4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days. (d) Do not submit an offer unless -- (1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or (2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has (i) Waived application under 22 U.S.C. 2593e(d) or (e); or (ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C. 2593e(b). (e) <i>Remedies</i>. The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification. (End of provision) 52.240-90 Security Prohibitions and Exclusions Representations and Certifications (DEVIATION 2026-O0038) (FEB 2026) (a) <i>Definitions</i>. As used in this provision- -- <i>Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component</i> have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions. <i>Business operations</i> means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce. <i>Marginalized populations of Sudan</i> means -- (1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and (2) Marginalized areas in Northern Sudan described in section 4(9) of such Act. <i>Restricted business operations</i> means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted CONTINUED ON NEXT PAGE		

SECTION K - REPRESENTATIONS, CERTIFICATIONS AND STATEMENTS (CONTINUED)

business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate --

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended.

Sensitive technology --

- (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically --
 - (i) To restrict the free flow of unbiased information in Iran; or
 - (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
- (2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) *Procedures.*

- (1) *Covered telecommunications and video surveillance.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(2) *FASCSA Orders.*

- (i) The Offeror shall search in SAM for the phrase "FASCSA order" for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.
- (ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).
- (iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) *Covered telecommunications equipment or services representations.* By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror's possession but does not need to include an internal or third-party audit) --

- (1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and
- (2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) *FASCSA Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror's possession but does not need to include an internal or third-party audit.

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(e) *Sudan certification.* By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) *Iran Representation and Certifications.*

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), by submission of its offer

--

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds \$15,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if --

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(g) *Disclosure.*

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;

(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the

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product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);

(vii) Whether alternative products or services are available that would be compliant with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:

(i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.

(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.

(h) *Executive agency review of disclosures*. The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of provision)

52.240-91 Security Prohibitions and Exclusions (DEVIATION 2026-O0038) (FEB 2026)

(a) *Definitions*. As used in this clause --

American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at <https://www.sam.gov> (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means:

- (1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;
- (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or
- (4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means --

- (1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or

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any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means --

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled --

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act --covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6) --

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SECTION K - REPRESENTATIONS, CERTIFICATIONS AND STATEMENTS (CONTINUED) (1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use -- (i) Of that equipment; or (ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product; (2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but (3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract. <i>Intelligence community</i>, as defined by 50 U.S.C. 3003(4), means the following -- (1) The Office of the Director of National Intelligence; (2) The Central Intelligence Agency; (3) The National Security Agency; (4) The Defense Intelligence Agency; (5) The National Geospatial-Intelligence Agency; (6) The National Reconnaissance Office; (7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs; (8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy; (9) The Bureau of Intelligence and Research of the Department of State; (10) The Office of Intelligence and Analysis of the Department of the Treasury; (11) The Office of Intelligence and Analysis of the Department of Homeland Security; or (12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community. <i>Interconnection arrangements</i> means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources. <i>Kaspersky Lab-covered article</i> means any hardware, software, or service that -- (1) Is developed or provided by a Kaspersky Lab-covered entity; (2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or (3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity. <i>Kaspersky Lab-covered entity</i> means -- (1) Kaspersky Lab; (2) Any successor entity to Kaspersky Lab, including any change in name, e.g., "Kaspersky"; (3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or (4) Any entity of which Kaspersky Lab has a majority ownership. <i>National security system</i>, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other		
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SECTION K - REPRESENTATIONS, CERTIFICATIONS AND STATEMENTS (CONTINUED) organization on behalf of an agency -- (1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or (2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy. <i>Roaming</i> means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high. <i>Sensitive compartmented information</i> means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence. <i>Sensitive compartmented information system</i> means a national security system authorized to process or store sensitive compartmented information. <i>Source</i> means a non-Federal supplier, or potential supplier, of products or services, at any tier. <i>Subsidiary</i> means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation. <i>Substantial or essential component</i> means any component necessary for the proper function or performance of a piece of equipment, system, or service. <i>Unmanned aircraft</i> means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)). <i>Unmanned aircraft system</i> means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)). (b) <i>Prohibitions on providing or using specific products or services in performance of contract.</i> Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following: (1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328)); (2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91)); (3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing -- (i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or (ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles. (c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act --covered foreign entities. CONTINUED ON NEXT PAGE		

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SECTION K - REPRESENTATIONS, CERTIFICATIONS AND STATEMENTS (CONTINUED) (1) Prohibition. The Contractor is prohibited from -- (i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.); (ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and (iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31). (2) <i>Procedures.</i> The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act --covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract. (3) <i>Exemptions, exceptions, and waivers.</i> The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers. (d) <i>Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract.</i> (1) <i>Certain telecommunications and video surveillance equipment, systems, or services.</i> (i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). (ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using -- (A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or (B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles. (2) <i>Office of Foreign Assets Control Restrictions.</i> (i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States. (ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas. (A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists. (B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions- CONTINUED ON NEXT PAGE		

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SECTION K - REPRESENTATIONS, CERTIFICATIONS AND STATEMENTS (CONTINUED)

[programs-and-information.](#)

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at <https://www.trade.gov/consolidated-screening-list>, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) *Sudan prohibition.* The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) *Iran prohibitions.*

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over \$15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(e) *Governmentwide exclusion and removal orders.*

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f) *Reasonable inquiry.* The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(g) *Removal of prohibited products and services.* For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) *General report.*

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as

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SECTION K - REPRESENTATIONS, CERTIFICATIONS AND STATEMENTS (CONTINUED)

much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

- (i) Contract number and order number, if applicable;
 - (ii) The specific prohibition the product or service is not complying with;
 - (iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);
 - (iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));
 - (v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;
 - (vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);
 - (vii) Whether alternative products or services are available that would comply with the prohibition;
 - (viii) If the product or service is related to item maintenance, include the following information on the item being maintained:
 - (A) Brand;
 - (B) Model number, OEM number, manufacturer part number, or wholesaler number; and
 - (C) Item description, as applicable.
 - (ix) Any readily available information about mitigation actions implemented or recommended.
- (2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:
- (i) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.
 - (ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.
 - (iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.
- (3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.
- (4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.
- (i) *New FASCSA orders report.*
- (1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.
 - (2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.
 - (3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause

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SECTION K - REPRESENTATIONS, CERTIFICATIONS AND STATEMENTS (CONTINUED)

if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

- (i) Contract number and order number, if applicable;
- (ii) Name of the covered article or source subject to a FASCSA order;
- (iii) The specific FASCSA order the product or service does not comply with;
- (iv) The elements of (h)(1)(iii) through (ix) of this clause.
- (j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of clause)

52.207-4 ECONOMIC PURCHASE QUANTITY---SUPPLIES (AUG 1987) FAR

As prescribed in [7.203](#) , insert the following provision:

(a) Offerors are invited to state an opinion on whether the quantity(ies) of supplies on which bids, proposals or quotes are requested in this solicitation is (are) economically advantageous to the Government.

(b) Each offeror who believes that acquisitions in different quantities would be more advantageous is invited to recommend an economic purchase quantity. If different quantities are recommended, a total and a unit price must be quoted for applicable items. An economic purchase quantity is that quantity at which a significant price break occurs. If there are significant price breaks at different quantity points, this information is desired as well.

OFFEROR RECOMMENDATIONS

ITEM	QUANTITY	PRICE QUOTATION	TOTAL

(c) The information requested in this provision is being solicited to avoid acquisitions in disadvantageous quantities and to assist the Government in developing a data base for future acquisitions of these items. However, the Government reserves the right to amend or cancel the solicitation and resolicit with respect to any individual item in the event quotations received and the Government's requirements indicate that different quantities should be acquired.

(End of provision)

52.225-18 PLACE OF MANUFACTURE (AUG 2018) FAR

As prescribed in 25.1101(f), insert the following solicitation provision:

(a) Definitions. As used in this provision --

“Manufactured end product” means any end product in Federal Supply Classes (FSC) 1000-9999, except --

- (1) FSC 5510, Lumber and Related Basic Wood Materials;
- (2) Federal Supply Group (FSG) 87, Agricultural Supplies;
- (3) FSG 88, Live Animals;
- (4) FSG 89, Food and Related Consumables;
- (5) FSC 9410, Crude Grades of Plant Materials;
- (6) FSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) FSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) FSC 9610, Ores;
- (9) FSC 9620, Minerals, Natural and Synthetic; and
- (10) FSC 9630, Additive Metal Materials.

“Place of manufacture” means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

(b) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly --

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

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SECTION K - REPRESENTATIONS, CERTIFICATIONS AND STATEMENTS (CONTINUED)

(2) ☐ Outside the United States.

(End of provision)

252.204-7016 COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES---REPRESENTATION (DEC 2019) DFARS

As prescribed in [204.2105](#) (a), use the following provision:

(a) *Definitions.* As used in this provision, “covered defense telecommunications equipment or services” has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered defense telecommunications equipment or services”.

(c) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7017 PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES---REPRESENTATION (MAY 2021) DFARS

As prescribed in [204.2105](#) (b), use the following provision:

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016 , Covered Defense Telecommunications Equipment or Services --Representation, that it “does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.”

(a) *Definitions.* “Covered defense telecommunications equipment or services,” “covered mission,” “critical technology,” and “substantial or essential component,” as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016 , Covered Defense Telecommunications Equipment or Services --Representation, that it “does” provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it “will provide covered defense telecommunications equipment or services,” the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021) FAR

As prescribed in [4.2105](#)(a), insert the following provision:

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it “does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument” in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services --Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services . The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it “does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services” in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) *Definitions.* As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.* (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the

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head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to --

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to --

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(d) *Representations*. The Offeror represents that --

(1) It [] will, [] will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds “will” in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that --

It [] does, [] does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds “does” in paragraph (d)(2) of this section.

(e) *Disclosures*. (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded “will” in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment --

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services --

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded “does” in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment --

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services --

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES---REPRESENTATION (OCT 2020) FAR

As prescribed in 4.2105(c), insert the following provision:

(a) *Definitions*. As used in this provision, “covered telecommunications equipment or services” has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services”.

(c) *Representation*. The Offeror represents that it [] does, [] does not provide covered telecommunications equipment or services as a part of its offered

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SECTION K - REPRESENTATIONS, CERTIFICATIONS AND STATEMENTS (CONTINUED)

products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.
 (2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it [] does, [] does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.
 (End of provision)

52.204-29 FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS -- REPRESENTATION AND DISCLOSURES (DEC 2023) FAR

REMOVE FAR 52.204-24 (DEC 2023), FAR 52.204-26 (NOV 2021), AND 52.204-29 (JUN 2023). INSTEAD, REFERENCE **52.240-90 Security Prohibitions and Exclusions Representations and Certifications (DEVIATION 2026-O0038) (FEB 2026)** IN THIS SECTION.

SECTION L - INSTRUCTIONS, CONDITIONS AND NOTICES TO OFFERORS

(a) Proposal Organization

An offeror's proposal shall consist of completed Technical and Business Proposals as described in this section. **Written portions (completed solicitation, amendments (if applicable), and past performance information) must be submitted electronically on DIBBS at <https://www.dibbs.bsm.dla.mil> prior to the date and time in Block 9 on page 1 of form SF33. PDM Submissions must be received as described on page 3 of this solicitation.** Proposals that do not provide the required information and in the prescribed format may be excluded from further consideration. The proposal will be evaluated to determine compliance with all characteristics listed for evaluation in the solicitation. Failure to furnish this information by the time specified in the solicitation may be cause for rejection of offers if not otherwise acceptable under the provisions for considering late offers.

An offeror's proposal shall consist of two (2) volumes as follows:

Volume	Title	Number of Copies Suggested	Page Limit
I	Technical Proposal	1	NONE
II	Business Proposal	1*	NONE

*Prices offered in Section B of this solicitation constitute the offeror's Business Proposal. Offerors must return one (1) completed and signed copy of the solicitation. Pricing must be offered for the 12-month performance period in order to be eligible for award.

Evaluations for each volume of the proposal will be performed exclusive of one another. Therefore, the Technical Proposal shall contain no reference to business/pricing data. All cost/price data/information, if required, must be in Volume II. Conversely, the Business Proposal shall not address information requested under a technical factor/aspect. Each volume shall be labeled accordingly to facilitate evaluation.

(b) Submission Requirements

1. Volume I - Technical Proposal

SECTION L - INSTRUCTIONS, CONDITIONS AND NOTICES TO OFFERORS (CONTINUED)

The technical proposal must demonstrate the offeror's ability to meet the Government's requirements as set forth in this solicitation. Failure to provide information as requested in any of the technical evaluation factors/sub-factors/aspects/elements identified in the solicitation may be considered a "no response" and may result in a deficiency finding and warrant an "Unacceptable" or "Fail" rating for the applicable factor, sub-factor, aspect, or element. Failure to provide the information requested may cause an offeror's proposal to be determined unacceptable and eliminated from further consideration for award. Offerors are advised to indicate, when appropriate, that they have no relevant past performance.

Offerors are required to prepare and submit a proposal aligned with the evaluation factors specified in this solicitation to facilitate Government review and evaluation. Continuation sheets shall clearly identify the solicitation number and the offeror's name on each page.

INSTRUCTIONS FOR SUBMITTING PDMs (Non-Cost/Price Evaluation Factor 1):

The offeror shall submit **four (4) Parkas, Navy Working Uniform, Type III** PDMs as specified below as part of its proposal. PDMs will be submitted at no expense to the Government and must be received prior to the time and date set forth for closing of offers. If not destroyed by testing/evaluation, models will be returned at the offeror's request and expense. The offeror must notify the Government in writing within 30 days after award to request return of PDMs. If the contractor fails to respond within the timeframe, the Government will dispose of the PDMs.

The offeror is to provide a letter stating the places of performance and PDMs produced by each place of performance with an identification number (the identification number will also be on the label, see label requirements below). **Failure to submit PDMs in accordance with the PDM Submission Requirements below may cause the entire offer to be rejected.**

PDM SUBMISSION REQUIREMENTS

Item: Parka, Navy Working Uniform, Type III

Number of Units Required: 4

Size: Medium-Regular (NSN: 8415-01-573-4937)

(a) PDMs will be tested and evaluated for conformance to the visual, dimensional, and manufacturing operations for requirements of the specification, pattern, technical data, and conformance to the NCTRF PD 04-09C testing requirements listed below. The offeror shall produce the Product Demonstration Models and the production quantity at the same facility and certifies to this effect by their submission of the Product Demonstration Models. Failure of models to conform to all requirements of NCTRF PD 04-09C may result in an unfavorable evaluation of the offers.

Page 49, Para. 4.3.5.2.1 - HYDROSTATIC RESISTANCE TEST Initial, and after 5 launderings

Page 48, Para. 4.3.5.1.1 - Parka laundering procedure

Page 49, Para. 4.3.5.2.2 - Seam seal and reinforcement tape ends integrity test.

Page 49, Para. 4.3.5.2.4 - Physical surface appearance

Note: Bidders should be aware that the purchase description contains extensive end item testing requirements. The requirement for the appearance after laundering will be evaluated after five (5) launderings.

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SECTION L - INSTRUCTIONS, CONDITIONS AND NOTICES TO OFFERORS (CONTINUED)

(b) Products delivered under any resultant contract shall conform to the specification/commercial product description. Approval of the PDMs as part of the technical proposal does not relieve the potential awardee from the requirements of the specification/commercial product description of the RFP. Additionally, approved PDMs will not serve as a manufacturing standard.

(c) Due to the fact that laboratory testing of the PDMs is required under this solicitation, **the use of alternate materials is not permitted**. All materials must be made in accordance with the requirements of NCTRF PD 04-09C and applicable interim changes.

Note: The offeror is not permitted to utilize alternate manufacturing operations or change the construction/design of the NWU Parka Type III. The PDMs shall be an exact match to all the specific requirements in the solicitation and technical documents and shall be in strict accordance with the government provided pattern with no deviations in design or manufacturing processes. Manufacturing operations for the placement of labels must be completed to indicate compliance with the label requirements. The label need not be printed for the purpose of submission of models; however, the model size must be indicated and attached to the model. An RFID tag is **not** required for PDMs.

(d) Prior to PDM submittal, if an offeror has a question or notices a discrepancy in the technical requirements between the written documentation and the pattern, or a drawing, or between two written requirements, or any other component of the technical data package, they should contact the Contracting Officer for resolution. **Questions regarding the technical documents and PDM construction should be submitted at least FIVE (5) business days before the date for proposal submission listed in block 9 on page 1 of the SF 33. Questions regarding the technical documents and PDM construction may not be addressed after that date, so it is imperative that all technical requirements are thoroughly reviewed prior to that date and questions regarding the technical documents and PDM construction are submitted prior to that date.**

PDM(s) MAY ONLY BE FURNISHED WITH THE OFFEROR'S PROPOSAL AT OR PRIOR TO THE TIME AND DATE OF THE CLOSING OF THE SOLICITATION, AS INDICATED IN BLOCK 9 ON PAGE 1 OF THE SOLICITATION. SUBSEQUENT SUBMISSIONS WILL NOT BE PERMITTED, EVEN IF DEFICIENCIES EXIST IN THE PDM(s) SUBMITTED. THEREFORE, THE OFFEROR MUST FURNISH ITS BEST EFFORT WHEN SUBMITTING A PDM. CORRECTIONS OF THE PDM (s) WILL NOT BE ACCEPTED BY THE GOVERNMENT.

INSTRUCTIONS FOR SUBMITTING PAST PERFORMANCE (Non-Cost/Price Evaluation Factor 2):

From the period within three (3) years preceding the solicitation closing date, the Government will assess offeror-submitted past performance information, as well as relevant information from any other sources (such as using CAGE code, CPARS, etc. to search for Past Performance), for use as an indicator of successful contract performance. The Government will reserve the right to consider Past Performance information that occurs following the closing of the solicitation as well.

An overall rating will be assigned for Factor 2 – Past Performance – Performance Confidence Assessment based on the combined evaluation of all three (3) Aspects: (a) Recency, (b) Relevancy, and (c) Quality of Performance. The Past Performance aspects are of equal importance. There are

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SECTION L - INSTRUCTIONS, CONDITIONS AND NOTICES TO OFFERORS (CONTINUED)

two (2) elements under Aspect (c) Quality of Performance: Element (i) Delivery Performance and Element (ii) Quality of Products. The two Elements will be combined to arrive at an overall rating for the Quality of Performance aspect. Element (i) Delivery Performance is more important than Element (ii) Quality of Products under Aspect (c) Quality of Performance.

The currency and relevance of the information, source of information, context of data, volume of business, and general trends in performance will be considered. If negotiations are opened, offerors may be given an opportunity to address especially unfavorable reports of past performance and the offeror's response or lack thereof will be taken into consideration.

Offeror's past performance will be evaluated in order to assess the Government's confidence in the probability that a prospective contractor will successfully perform as proposed. The Government will evaluate the offeror's record of contract compliance in supplying products that meet the user's needs.

Every past performance evaluation will consider the following Aspects:

Aspect (a) Recency

Recency is generally expressed as a time period during which past performance is considered relevant and is critical to establishing the relevancy of past performance information. Recency will be evaluated by using an Offerors Supplier Performance Risk System (SPRS), the Performance System of Record, (previously known as PPIRS-SR) contract data for Federal Supply Classes (FSC) 8405 (*Outerwear, Men's*), 8410 (*Outerwear, Women's*), and 8415 (*Clothing, Special Purpose*). Please list the CAGE code for all places of performance proposed on subject solicitation.

The offeror shall describe the extent of experience producing the same or similar item(s) for a commercial or Government entity within three (3) years preceding the solicitation closing date. For each contract, the offeror shall provide:

- (1) Name of Customer.
- (2) The contract/order number.
- (3) Date of the contract/order.
- (4) The commercial or Government entity point of contact (name, address and telephone number).

Aspect (b) Relevancy

Relevancy will be evaluated by using your SPRS contract data for FSCs 8405, 8410, and 8415. Please list the CAGE code for all places of performance proposed on subject solicitation.

For each contract identified in response to Aspect (a) above, the offeror shall provide:

- (1) Average dollar amount of the contract per annum.
- (2) Total contract/order quantity.
- (3) Quantity shipped per month.
- (4) Period of performance.
- (5) Brief description of the item(s), including the National Stock Number (NSN) and specification number, if applicable.
- (6) Brief explanation of how the items are similar in construction/complexity to the items being

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SECTION L - INSTRUCTIONS, CONDITIONS AND NOTICES TO OFFERORS (CONTINUED)

solicited, if applicable. If you have not made items of the same or similar construction, explain how you will accomplish this should you be the successful offeror.

(7) Were there any extraordinary actions to satisfy customer needs (be specific)?

Aspect (c) Quality of Performance

- Element (i) Delivery Performance

Delivery performance will be evaluated by using SPRS contract data, the history record of performance, for FSCs 8405, 8410, and 8415. The weighted average score of the FSCs will be used to come to an overall SPRS score. To get this overall score the Government will multiply the 8405 score by the amount of records under that FSC. The Government will do the same for FSCs 8410 and 8415, then add the overall score results for 8405, 8410, and 8415. This sum will then be divided by the total amount of records under FSCs 8405, 8410, and 8415 to come to the Overall SPRS Score for the offeror.

For each contract identified in response to Aspect (a) above, the offeror shall specifically indicate whether the items were delivered on time, ahead of, or behind schedule. If the items were not delivered on time, the offeror shall also provide the number of days delivered ahead of or behind schedule, whether revised delivery schedules were granted and an explanation for any delivery extensions. For a delinquent delivery, the description shall also include an explanation for its occurrence, a clear plan or evidence of measures taken to preclude a recurrence and whether or not the problem was the offeror's fault, otherwise excusable or subject to mitigating circumstances.

- Element (ii) Quality of Products

For each contract identified in response to Aspect (a) above, the offeror shall describe the quality of items delivered. For substandard quality, the offeror shall specifically address any warranty actions taken; quality deficiency reports issued, or returned merchandise (including one-for-one exchanges). The description of the problem shall also include an explanation for its occurrence, a clear plan or evidence of measures taken to preclude a recurrence and whether or not it was the offeror's fault or subject to mitigating circumstances.

Past Performance - Performance Confidence Assessment: An overall rating will be assigned for Factor 2 - Past Performance - Performance Confidence Assessment based on the combined evaluation of all three (3) aspects of Recency, Relevancy, and Quality of Performance.

See FAR 52.215-6 and Section B regarding Place of Performance. Offerors proposing to utilize subcontractor(s) for end item manufacturing must provide the estimated quantity per item per contract term, either in total numbers, or a percentage of the total quantity ordered, that each proposed subcontractor will produce. **Failure to provide past performance history may result in a rating of Neutral Confidence.**

In accordance with FAR 15.306(b)(1)(i), communication with the Government may be held regarding adverse past performance. If the Government decides to enter into discussions, offeror responses regarding adverse past performance information during communications constitutes "a prior opportunity to

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SECTION L - INSTRUCTIONS, CONDITIONS AND NOTICES TO OFFERORS (CONTINUED)

respond".

2. Volume II - Business Proposal

(a) Completed Solicitation, Attachments, and Amendments.

CAUTION: On the first page and throughout the solicitation (and in any amendments) there are fill-ins, check boxes, and signature lines for the offeror to complete - failure to complete may result in rejection of the offer. All signatures must be either handwritten or digital signatures. Typed signatures are not acceptable and may result in rejection of the entire proposal.

Authorized Negotiators: Offerors are advised that the Government reserves the right to make an award based on initial offers without conducting negotiations, pursuant to FAR 52.215-1. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. For Authorized Negotiators, Offerors are instructed to complete the list found in Section A of the solicitation. The list shall provide the authorized personnel required to negotiate on the offeror's behalf with the Government in connection with this request for proposal. Include the name, title, e-mail address, and telephone number for each authorized negotiator.

A list of places of performance (See FAR 52.215-6 Place of Performance in Section B of this solicitation and instructions following) must be filled out or attached to the solicitation.

Offered pricing must be annotated in Section B - Schedule of Supplies/Services of the solicitation.

(b) Cost and Pricing Data - Although a full cost and pricing proposal is not required, the offeror may be required to submit information other than certified cost and pricing data during discussions, should they occur. Therefore, offerors are cautioned to retain cost proposal worksheets, vendor quotations, and related support information.

52.215-1 Instructions to Offerors-Competitive Acquisition (DEVIATION 2026-O0038) (FEB 2026)

52.216-1 Type of Contract (DEVIATION 2026-O0038) (FEB 2026)

The Government contemplates award of a **Firm Fixed Price, Indefinite Delivery / Indefinite Quantity** contract resulting from this solicitation.

(End of provision)

52.233-2 Service of Protest (DEVIATION 2026-O0038) (FEB 2026)

(a) Protests, (as defined in FAR 33.102), that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), must be served on the Contracting Officer identified in the solicitation by obtaining written and dated acknowledgment of receipt from them.

(b) The copy of any protest must be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

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SECTION L - INSTRUCTIONS, CONDITIONS AND NOTICES TO OFFERORS (CONTINUED)

252.203-7005 REPRESENTATION RELATING TO COMPENSATION OF FORMER DOD OFFICIALS (SEP 2022) DFARS

252.204-7008 COMPLIANCE WITH SAFEGUARDING COVERED DEFENSE INFORMATION CONTROLS (OCT 2016) DFARS

252.215-7008 ONLY ONE OFFER (DEC 2022) DFARS

L02 ELECTRONIC ORDER TRANSMISSION (JUN 2020)

Offerors shall select one of the following alternatives for paperless order transmission:

- ☐ American National Standards Institute (ANSI) X12 Standards through a value added network (VAN) approved by DLA Transaction Services; or
- ☐ Electronic mail (email) award notifications containing web links to electronic copies of the Department of Defense (DD) Form 1155, Order for Supplies or Services.

Offerors must register on the [DLA Internet Bid Board System \(DIBBS\)](https://www.dibbs.bsm.dla.mil/) (<https://www.dibbs.bsm.dla.mil/>) to receive email notification. If the offeror elects ANSI/VAN order transmission, DLA will send Electronic Data Interchange (EDI) transaction sets at time of award. The contractor shall acknowledge receipt of transaction sets with a functional acknowledgement or order receipt message within 24 hours. If the contractor receives the award transaction set on a weekend or Federal holiday, the contractor shall acknowledge receipt on the next business day. This acknowledgement will confirm that the contractor's interface with the system is working as needed for contract ordering.

Offerors can obtain information regarding EDI, ANSI X12 transactions, and VANs approved by DLA Transaction Services at [Defense Automatic Addressing System \(DAAS\) Value Added Network List](https://www.transactionservices.dla.mil/daashome/edi-vanlist-dla.asp) (<https://www.transactionservices.dla.mil/daashome/edi-vanlist-dla.asp>).

Offerors should direct questions concerning electronic ordering to the appropriate procuring organization point of contact below:

DLA Land and Maritime, Helpdesk.EBS.L&M.LTCs@dlamail

DLA Troop Support, dlaedigroup@dlamail

DLA Aviation, avnprocsysproceddiv@dlamail, phone # 804-279-4026

L06 AGENCY PROTESTS (DEC 2016)

SECTION M - EVALUATION FACTORS FOR AWARD

Proposals will be evaluated for both non-cost/price factors and price reasonableness following the evaluation procedures in this section/solicitation.

“Best Value” contracting will be utilized as a means to rely on industry for timely delivery of quality products, while reducing the Government's administrative costs associated with contractor oversight. To this end, evaluation will occur for non-price factors in addition to price under this solicitation. Since effective production and quality control practices translate into better quality products, fewer delinquencies, reduced administrative costs and lower overall cost to the Government, we will be using the offeror's proposal to assess the efficiency of production methods and the effectiveness of quality control procedures. Moreover, those offerors who consistently demonstrate an ability to deliver on time while consistently improving the quality of the products they produce will receive more favorable consideration than those who do not.

(a) The Government will make award to the responsible offeror(s) whose offer conforms with the solicitation and is most advantageous to the Government, cost or price, and other evaluation factors considered. The Government will award a contract only to concerns whose technical proposals establish that they can meet the requirements of the Government. For this solicitation, all evaluation factors other than cost or price, when combined, are -

☐ significantly less important than cost or price. As the evaluated cost/price becomes more equal, relative importance of all other evaluation factors becomes more significant.

☐ approximately equal to cost or price.

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SECTION M - EVALUATION FACTORS FOR AWARD (CONTINUED)

[X] significantly more important than cost or price. As other evaluation factors become more equal, the evaluated cost or price becomes more important.

(b) Technical and Non-Cost/Price Evaluation Factors (listed in descending order of importance):

Factor 1: Product Demonstration Models

This Factor will have the following sub-factors, each having equal importance. The elements under each sub-factor are also of equal importance.

Sub-factor (a): Examination of End Item

Element (i) - Conformance to Manufacturing Operations of the Specification

Element (ii) - Conformance to Visual Requirements of the Specification

Element (iii) - Conformance to Dimensional Requirements of the Specification

Sub-factor (b): Testing of End Item

Element (iv) - Hydrostatic Resistance Test - Initial and after 5 launderings

Element (v) - Laundering Test and Appearance After Laundering

NOTE: Specifications and corresponding technical documentation can be located in Section J of this solicitation.

PDMs serve as a check for further consideration. The elements for each sewing place of performance will be rated as follows:

- The elements under sub-factor (a) will be rated as Outstanding, Good, Acceptable, Marginal, or Unacceptable. An adjectival rating will be assigned to each element under sub-factor (a), and the lowest rating will be assigned to the overall item. A place of performance receiving an Unacceptable rating on any element will receive an overall Unacceptable rating for the item, will be rejected as a place of performance for that item, and will not be evaluated further as a part of the offer for the item. If a place of performance renders an "Unacceptable" rating for any element of sub-factor (a), and the subject proposal plan cannot survive without that said place of performance, the entire offer will be rejected and will not be evaluated further. If all places of performance for an item receive an Unacceptable rating for an item, the offer will receive an Unacceptable rating for Factor 1 - PDMs, and the offer will be rejected and will not be evaluated further.
- The elements under sub-factor (b) will be rated as Pass or Fail. A Fail rating in any of the elements will be cause for an overall Fail rating of sub-factor (b). A Fail rating in sub-factor (b) will be cause for a Fail rating of the overall Factor 1 - PDMs. A place of performance receiving a Fail rating on sub-factor (b) will receive an overall Fail rating for the factor, will be rejected as a place of performance, and will not be evaluated further as a part of the offer. If a place of performance renders a Fail rating for sub-factor (b), and the subject proposal plan cannot survive without that said place of performance, the entire offer will be rejected and will not be evaluated further. If all places of performance receive a Fail rating on sub-factor (b), the offer will receive a Fail rating for the overall factor, and the offer will be rejected and will not be evaluated further.

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SECTION M - EVALUATION FACTORS FOR AWARD (CONTINUED)

The adjectival ratings for evaluation of elements (i), (ii), and (iii) under sub-factor (a) are as follows:

OUTSTANDING: PDM indicates an exceptional understanding of the requirements and/or risk of unsuccessful performance is low and/or PDM contains no weaknesses.

GOOD: PDM indicates a thorough understanding of the requirements and/or risk of unsuccessful performance is low to moderate and/or PDM contains a weakness or weaknesses that are not significant or are very easily correctable during production.

ACCEPTABLE: PDM indicates an adequate understanding of the requirements and/or risk of unsuccessful performance is no worse than moderate and/or the PDM contains a weakness or weaknesses that require preventative corrective action in production.

MARGINAL: PDM does not indicate an adequate understanding of the requirements and/or risk of unsuccessful performance is high and/or the PDM contains a significant weakness or weaknesses that require substantial corrective action in production and indicates a low probability of producing an acceptable item.

UNACCEPTABLE: PDM does not meet requirements of the solicitation and, thus, contains one or more deficiencies and/or significant weaknesses determined by the evaluation team to render the PDM completely unacceptable for its intended function. Risk of unsuccessful performance is unacceptably high. Proposal is unawardable. The PDM cannot become acceptable without extensive corrective action or a remedy that would be tantamount to a new PDM."

The Pass/Fail ratings for evaluation of elements (iv) and (v) under sub-factor (b) are as follows:

PASS: Proposal clearly meets the minimum requirements of the solicitation. Proposal meets minimum requirements and indicates an adequate approach and understanding of the requirements. Risk of unsuccessful performance is no worse than moderate. Strengths and weaknesses are offsetting or will have little or no impact on contract performance. The proposal's strengths and weaknesses are considered offsetting or having little or no impact on the contract performance when the PDM substantially meets the stated requirements of the acquisition documentation (i.e., specification; commercial item description; purchase description; etc.) and the PDM either does not contain a weakness or contains a weakness or weaknesses that are either easily correctable in production or require preventative corrective action in production which can be accomplished.

FAIL: Proposal does not clearly meet the minimum requirements of the solicitation. Proposal does not meet minimum requirements and contains significant deficiencies. Proposal is unawardable. The PDM substantially fails to meet many significant designs and/or other requirements of the acquisition documentation (i.e. specification: commercial item description; purchase description, etc.) and indicates a lack of understanding of the technical requirements. The PDM exhibits a significant weakness or weaknesses determined by the evaluation team that render the PDM completely unacceptable for its intended function. The PDM cannot become acceptable without extensive corrective action or remedy that would be tantamount to a new PDM.

NOTE: THE TERM "WEAKNESS" IS SYNONYMOUS WITH THE TERM "DEFECT" AS CONTAINED IN THE SPECIFICATION.

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SECTION M - EVALUATION FACTORS FOR AWARD (CONTINUED)

Factor 2: Past Performance - Performance Confidence Assessment

The Government will evaluate **an offer's contractual performance in SPRS reports for FSC 8405, 8410, and 8415, and submitted Past Performance information** for each of the following aspects/elements and assign an overall rating for Past Performance according to the method and ratings described below. The Government may consider any recent, relevant information available to it through Government systems, including but not limited to CPARS, SPRS, and eSRS, Government personnel, and commercial points of contact (collectively Government Sources).

Aspect (a): Recency

Aspect (b): Relevancy

Aspect (c): Quality of Performance

Element (i): Delivery Performance

Element (ii): Quality of Products

The overall evaluation rating assigned for Factor 2: Past Performance - Performance Confidence Assessment will be a level of confidence based on the combined evaluation of the three (3) Aspects of Recency, Relevancy, and Quality of Performance. The three (3) Aspects are of equal importance. There are two (2) Elements under Aspect (c) Quality of Performance: Element (i) Delivery Performance and Element (ii) Quality of Products. The two (2) Elements will be combined to arrive at an overall rating for the Quality of Performance Aspect. The same adjectival ratings and descriptions will be used for both elements. Element (i) Delivery Performance is more important than Element (ii) Quality of Products.

1. Recency will be evaluated by using the SPRS contract data for FSCs 8405, 8410, and 8415, for the offeror's CAGE code and the places of performance CAGE codes. At the Contracting Officer's discretion, performance after the initial SPRS reports and up to time of award may also be considered, including additional SPRS reports and scores.

The Recency aspect will be evaluated in accordance with the following rating descriptions:

RECENT: Offeror's past performance during the three (3) years prior to the closing date, as well as its recent performance up until the time of award, will be considered as Recent.

NOT RECENT: Any performance outside of, or greater than three (3) years prior to the closing date, will be considered "Not Recent" and will not be further evaluated for Relevancy or Quality of Performance.

2. Contractual performance determined to be Recent will be evaluated for Relevancy according to the following ratings and descriptions. An overall rating will be assigned for the Relevancy Aspect. Contractual performance determined to be Not Relevant will be excluded from further evaluation. Recent contractual performance that is not included in SPRS reports may not be evaluated without providing the information outlined in Section L. Not providing this information may result in a rating of Not Relevant.

VERY RELEVANT: Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.

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SECTION M - EVALUATION FACTORS FOR AWARD (CONTINUED)

RELEVANT: Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.

SOMEWHAT RELEVANT: Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.

NOT RELEVANT: Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

3. Contractual performance determined to be Very Relevant, Relevant, or Somewhat Relevant will be evaluated for the Quality of Performance aspect.

Element (i) Delivery Performance under Aspect (c) Quality of Performance will be evaluated using SPRS delivery scores for FSC 8405, 8410, and 8415, for the offeror's CAGE code and the places of performance CAGE codes, as well as supplemental information provided in the Technical Proposal and Government Sources regarding contract performance not included in SPRS.

Element (ii) Quality of Products under Aspect (c) Quality of Performance will be evaluated using Contractor Performance Assessment Reporting System (CPARS) quality data for FSC 8405, 8410, and 8415, for the offeror's CAGE code and places of performance CAGE codes, as well as supplemental information provided in the Technical Proposal and Government Sources regarding contract performance not included in CPARS.

Elements (i) Delivery Performance and (ii) Quality of Products will be evaluated according to the following ratings and descriptions. If no information exists for either of these two elements, the elements will be rated Neutral and Aspect (c) Quality of Performance will also receive a Neutral rating, and the offer will receive an overall Past Performance - Performance Confidence Assessment rating of Neutral Confidence.

OUTSTANDING The offeror's past performance record indicates the offeror consistently meets or exceeds most contract requirements. Past contractual performance has been accomplished with few minor problems for which corrective actions taken by the offeror have been highly effective.

GOOD: The offeror's past performance record indicates the offeror consistently meets or exceeds some contract requirements. Past contractual performance has been accomplished with some minor problems for which corrective actions taken by the offeror have been effective.

ACCEPTABLE: The offeror's past performance record indicates the offeror met contract requirements. Offeror's record of past performance contains reports of some minor problems for which corrective actions taken by the offeror appear to have been or were acceptable.

MARGINAL: The offeror's past performance record indicates the offeror has not met some contract requirements. Offeror's record of past performance contains reports of serious problems for which the offeror did not identify corrective actions or proposed corrective actions that were only marginally effective or were not fully implemented.

UNACCEPTABLE: Proposal does not meet requirements of the solicitation, and thus, contains one or more deficiencies, and/or risk of unsuccessful performance is unacceptable. Proposal is unawardable. The

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SECTION M - EVALUATION FACTORS FOR AWARD (CONTINUED)

offeror's past performance record indicates the offeror has not met most contractual requirements, recovery was not accomplished in a timely manner, and proposed corrective actions appear or were ineffective.

NEUTRAL: No recent/relevant performance record is available, or the offeror's performance record is so sparse that no meaningful rating can be reasonably assigned.

Ratings and evaluations for elements (i) Delivery Performance and (ii) Quality of Products will be combined to arrive at a single overall rating for Aspect (c) Quality of Performance using the same adjectival ratings and descriptions as found in the elements for Delivery Performance and Quality of Products. Element (i) Delivery Performance element is more important than element (ii) Quality of Products in this evaluation.

4. Ratings and evaluations for the Past Performance Aspects of (a) Recency, (b) Relevancy, and (c) Quality of Performance will be combined to arrive at a single overall Performance Confidence Assessment rating for Factor 2 - Past Performance - Performance Confidence Assessment. This rating will be evaluated according to the following Adjectival ratings and descriptions. The three (3) aspects will have equal importance in this evaluation.

SUBSTANTIAL CONFIDENCE: Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.

SATISFACTORY CONFIDENCE: Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.

NEUTRAL CONFIDENCE: No recent/relevant performance record is available, or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.

LIMITED CONFIDENCE: Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.

NO CONFIDENCE: Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.

The Government reserves the right to verify information provided in the proposal and obtain additional information for evaluation purposes by contacting references provided in the proposal, personnel within DLA Troop Support, analyzing reports and data in SPRS, Electronic Subcontract Reporting System (eSRS), CPARS, and any other sources available to the Government.

NOTE: PDM and Past Performance Factors are independent evaluations. PDM Evaluation is more important than Past Performance Evaluation. When taken together, the two evaluations are significantly more important than price.

PRICE EVALUATION

The offered unit price in Section B will be evaluated against the requirements of the solicitation. For evaluation purposes, the total evaluated price will be calculated by taking the offeror's proposed unit price for the 12-month performance period in Section B and multiplying it by the evaluation quantity. The

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SECTION M - EVALUATION FACTORS FOR AWARD (CONTINUED)

evaluation quantity is listed below:

NWU Parka Type III Evaluation Quantity: 36,000 EA

Note: The evaluation quantity was determined by utilizing the Annual Estimated Quantity listed under Section B of the solicitation.

Pricing for each item will need to be determined fair and reasonable based on conducting a price analysis in accordance with FAR 15.404-1(b). Additionally, pricing significantly unbalanced between any of the performance periods may result in a determination that the pricing cannot be determined fair and reasonable. Failure to determine the pricing fair and reasonable may result in the removal of the offeror from award consideration.

The term "Annual Estimated Quantity" (AEQ) refers to the Government's good faith estimate of the requirement for the 12-month performance period. The forecasted AEQ is 36,000 EA. The AEQ is an estimate only and offerors are hereby notified that the Government may place orders up to the contract maximum dollar value of \$9,900,000.00.

Note: The solicitation contains a 12-month performance period. Offered unit pricing is to be FOB Destination. Failure to offer unit pricing for the 12-month period will result in rejection of the offeror's entire proposal.

52.215-2 Audit and Records-Negotiation (DEVIATION 2026-O0038) (FEB 2026)